

SPECIAL ISSUE



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GAZETTE NOTICE NO. 6378

THE STATUTORY INSTRUMENTS ACT

(Cap. 2A)

REGULATORY IMPACT STATEMENTS AND DRAFT ENERGY REGULATIONS

IT IS notified for the general information of the public that the Energy and Petroleum Regulatory Authority, pursuant to Section 8 of the Statutory Instruments Act, Cap. 2A, has developed the draft regulations listed below and prepared Regulatory Impact Statements for the proposed regulations. The statements outline the anticipated impacts of the proposed Coal and Coalbed Methane Regulations on stakeholders, members of the public, and other persons who may be affected by the proposed Regulations listed below:

1. The Energy (Coal & Coal Bed Methane) Regulations, 2026; and
2. The Energy (Coal and Coal Bed Methane Environmental Health and Safety) Regulations 2026.

The proposed Regulations have been developed pursuant to Sections 116 and 208 of the Energy Act, Cap. 314. The main objectives of the Regulations are to provide for—

- (a) The regulation of the upstream, midstream, and downstream coal and coalbed methane activities, covering exploration, extraction, production, processing, transportation, storage, import/export, value addition, sale and utilization of coal;
- (b) Sustainable local exploitation and use of coal and coalbed methane by enforcing environmental health and safety standards; and
- (c) Community participation in the use and development of coal and coalbed methane resources.

The Cabinet Secretary for Energy, in consultation with the Board for the management of the Energy & Petroleum Regulatory Authority, invites stakeholders in the energy sector and members of the public to submit their comments and proposals on the Regulations and the Regulatory Impact Statements within forty five (45) days from the date of this Notice.

The Regulations and the Regulatory Impact Statements are available free of charge at the offices of the Energy & Petroleum Regulatory Authority and on the Authority's website at <https://www.epra.go.ke/petroleum-regulatory-instruments>.

Written comments and proposals on the Regulations and Regulatory Impact Statements may be submitted in the following format:

TEMPLATE FOR SUBMISSION OF COMMENTS AND PROPOSALS ON THE PROPOSED COAL AND COALBED METHANE REGULATIONS

(LIST SPECIFIC REGULATION)

NAME OF ENTITY/PERSON

DATE:

COUNTY:

PART A: GENERAL COMMENTS AND PROPOSALS

- 1.
- 2.
- 3.

PART B: COMMENTS AND PROPOSALS ON THE PROPOSED COAL AND COALBED METHANE REGULATIONS AND REGULATORY IMPACT STATEMENT

Regulation clause number or Paragraph in Regulatory Impact Statement Comment or Proposal

Justification

- 1.
- 2.
- 3.

The written memorandum should be delivered during official working hours from 8.00 am – 5.00 pm on weekdays or by email addressed to:

*Director-General
Energy and Petroleum Regulatory Authority
Eagle Africa Centre
Longonot Road, Upperhill
NAIROBI.
P.O Box 42681 – 00100
Tel: 0709336000
Email: directorgeneral@epra.go.ke*

The Cabinet Secretary responsible for Energy, in consultation with the Board of Energy and Petroleum Regulatory Authority, also invites all stakeholders in the energy sector and members of the public to attend public engagements and submit their comments and proposals on the Regulations and the Regulatory Impact Statements.

Dated the 20th March 2026.

JOSEPH OKETCH (Dr.) (Eng.),
Director-General.

REGULATORY IMPACT STATEMENT (RIS)

For

THE DRAFT ENERGY

(COAL AND COALBED METHANE) REGULATIONS, 2026

Introduction

The Energy Act (Cap. 314) ("the Act") pursuant to sections 116 and 208, empowers the Cabinet Secretary (CS) to make regulations for the better carrying into effect of the provisions of the Act for the use of coal and coalbed methane for energy production and its derivatives. To operationalize the Act, the CS proposes the Draft Energy (Coal and Coalbed Methane) Regulations 2026 (Draft Regulations). In addition, it also applies to upstream coal activities, including exploration, extraction and management of coal which relate to the Ongoing Projects listed in paragraph 5 of the Fourth Schedule of the Act. The Draft Regulations aim to establish comprehensive requirements applicable to Coal for Energy Production operations and facilities in Kenya.

Regulatory Impact Statement

Section 6 of the Statutory Instruments Act (Cap. 2A), (SIA) provides that if a proposed statutory instrument is likely to impose significant costs on the community or a part of the community, the regulation making authority shall, prior to making the statutory instrument, prepare a regulatory impact statement about the instrument.

This Regulatory Impact Statement was prepared in accordance with the provisions of Section 7 of the Statutory Instruments Act (Cap. 2A).

STATEMENT OF OBJECTIVES

General Objective

The overall regulatory objective of the Draft Regulation is to establish a comprehensive legal framework for the use of coal and coalbed methane and its derivatives for energy production.

The specific objectives are to:

1. Regulate exploration, extraction, production, generation, processing, handling, transportation, storage, exportation, importation, common user facility, value addition, and sale of coal and coal bed methane (CBM) for energy production in Kenya.
2. Streamline licensing for upstream (Exploration, extraction, production, processing, transportation, storage, exportation, importation and sale of coal bed methane gas for use in energy production) and midstream and downstream (Processing, value addition, common user facility, transportation, storage, exportation, and importation of coal for use in energy production).
3. Promote local community involvement in the use of coal and coalbed methane gas.
4. Provide for the establishment of a multi-sectoral committee to streamline governance on the use of coal and coalbed methane and its derivatives for energy production.
5. Provide a framework for the regulation of coal and coalbed methane use and the application, review, approval, and/or rejection, renewal, revocation or suspension of permits, licences and certificates.
6. Provide a framework for the design, construction, installation, operation, maintenance, inspection and decommissioning of coal and coalbed methane gas facilities.

7. Provide requirements applicable for data and statistics management and reporting.
8. Provide for the constitution and management of coal concession blocks
9. To provide for the roles and responsibilities of the Government, the Energy and Petroleum Authority ("the Authority"), Concessionaire, other licensees/permit/certificate holders, contractors, operators, local communities, and other stakeholders in the use of coal and coal bed methane gas operations;

STATEMENT ON THE EFFECT OF THE DRAFT REGULATIONS

The coal sector in Kenya currently lacks a robust regulatory framework that integrates local content development, environmental protection, and community participation. Existing laws, including the Mining Act (Cap. 306), Energy Act (Cap. 314), and environmental regulations, fail to adequately address:

1. Sufficient environmental protection and pollution control
2. Monitoring, supervision, and enforcement of regulations
3. Frameworks for local coal and coalbed methane gas development and production
4. Economic opportunities for Kenyan businesses
5. Stakeholder engagement and community participation
6. Equitable distribution of coal sector benefits

These Draft Regulations will promote the responsible development of Kenya's coal and coalbed methane gas resources while protecting the environment, promoting industrial development and creating local economic benefits. Moreover, the regulations provide a clear framework to attract responsible investment and ensure compliance with industry best practices.

ASSESSMENT OF OTHER PRACTICABLE MEANS OF ACHIEVING THE OBJECTIVES

Option 1: Maintaining the Status Quo

Status quo would mean retention of the various pieces of laws guiding coal operations in Kenya. Maintaining the status quo will result in a failure to operationalize the provisions of the Energy Act (Cap 314) requiring regulations.

Accordingly, the status quo is NOT A DESIRABLE OPTION, as it fails to address the current identified gaps in coal and coalbed methane regulatory framework within the country.

Option 2: Use of Working Manuals and Guidelines

Section 2 of the Statutory Instruments Act (SIA) defines statutory instruments to include guidelines, directions, and regulations, thereby requiring such instruments to undergo comprehensive scrutiny and publication as outlined in Section 4 of the Statutory Instruments Act.

A working manual or any form of document established in the execution of the Energy Act (Cap. 314) falls within the scope of a statutory instrument and must therefore follow the progression process mandated by the SIA.

In addition, working documents are susceptible to legal challenge, as they cannot be used to create offences or penalties, which are essential for effective enforcement. Their applicability and validity may also be contested in court. This is not a viable or preferred option as it lacks the legal force and clarity required to support regulatory enforcement, investor certainty, and public accountability.

Option 3: Developing the Draft Energy (Coal and Coalbed Methane) Regulations 2026

The Draft Regulations will establish a clear legal framework for the exploration, extraction, production, generation, processing, transportation, storage, exportation, importation, sale, value addition, common user facility and use of coal and coal bed methane (CBM) gas for energy production in Kenya.

The Draft Regulations will fulfill Sections 116 and 208 of the Act by providing legally enforceable, universally applicable rules for the

use of coal, promoting industry best practices, and addressing regulatory gaps.

In light of the gaps identified in utilizing the other options, enacting the proposed Regulations is the Preferred Option.

Cost-Benefit Analysis

The Draft Regulations are expected to have economic, environmental and social impacts as illustrated below: -

Table 1: Economic, environmental and social impacts due to regulations

Economic Impact Assessment

Impact/Benefit	Remarks
Economic Growth	Increased local employment, procurement and enterprise development in the coal sector. A higher retention of economic value within Kenya
Government Revenue	Potential increase in tax revenue from extraction of coalbed methane gas, coal mining and issuance of permits, certificates and licenses
Investor Confidence	Clear regulatory framework improves business predictability and attracting long-term investment
Compliance Costs	Companies may face higher short-term compliance costs
Energy security	Domestic production of coal and coalbed methane gas will reduce dependence on imported energy sources and enhance energy mix base.
Coal data and statistics	Data-driven decision making and efficient data management
Environmental Impact Assessment	
Impact/Benefit	Remarks
Environmental Impact	Mandatory Environmental and Social Impact Assessment (ESIA), emission controls, land rehabilitation and reduced ecological damage.
Responsible Practices	May lead to incentivization of adoption of carbon capture, clean coal technologies, responsible mining and extraction, pollution control and waste management.
Social Impact Assessment	
Impact/Benefit	Remarks
Skills Development	Training programs and technology transfer will build local coal technical expertise, enhancing long-term workforce capacity.
Social Equity	Promotes social inclusion in the coal value chain and enhanced local participation. Protecting community rights fosters inclusivity, accountability, and project acceptance while improving livelihoods through jobs, services, and infrastructure.

Administration And Compliance Costs

The Government and the Authority will incur costs for managing, monitoring, auditing, database maintenance, capacity-building initiatives and enforcement.

Additionally, there shall be the resource allocation cost element in administration of these Draft Regulations.

Conclusion

The implementation of the Draft Energy (Coal and Coalbed Methane) Regulations, 2026, will result in administrative and compliance costs for both the Government and the Authority. These costs will arise from activities such as management, monitoring, data collection and maintenance, compliance inspections, enforcement actions, stakeholder engagement, and capacity-building initiatives.

In addition, resource allocation will be required for staff deployment, development of operational systems and tools, continuous training, and administrative support necessary to ensure effective implementation and enforcement of the regulations

COPY OF THE DRAFT REGULATIONS

The Draft Energy (Coal and Coalbed Methane) Regulations, 2026 are annexed herein.

LEGAL NOTICE NO.

THE ENERGY ACT

(Cap. 314)

IN EXERCISE of the powers conferred by section 116 of the Energy Act (Cap. 314), the Cabinet Secretary, Ministry of Energy and Petroleum make the following Regulations—

ENERGY (COAL AND COAL BED METHANE ENVIRONMENTAL, HEALTH AND SAFETY) REGULATIONS, 2026

PART I – PRELIMINARY

Citation.

1. These Regulations may be cited as the Energy (Coal and Coal Bed Methane Environmental, Health and Safety) Regulations, 2026.

Interpretation.

(2) In these Regulations, unless the context otherwise required—

“Act” means the Energy Act;

“accident” means an occurrence or event that results in loss of life, personal injury, property damage or environmental damage;

“approved standard” means a standard under the Standards Act;

“asphyxiant gas” means any gas the release of which may cause suffocation by displacing oxygen;

“coal agreement” means the right to exploit coal and coal bed methane resource pursuant to an agreement between the Government and the concessionaire issued under these regulations;

“coal facility” means any facility involved in coal and coal bed methane operations;

“coal industry” means the industry sector involved in coal operations;

“coal operator” means a project proponent, a licensee, coal or coal bed methane permit holder and their agents;

“coal operations” means the exploration, production, processing, import, export, storage, sale, utilization, common user facilities, transport of coal and coal bed methane and its derivatives;

“coal waste” means any byproduct generated from coal operations.

“decommissioning” means plugging and abandonment, recovery, removal and disposal, restoration, or if applicable re-deployment of coal facilities, infrastructure and assets related to coal operations;

“emergency” means a present or imminent event, outside the scope of normal operations, that requires prompt action and co-ordination of resources to protect the health, safety or welfare of people or to limit damage to property and the environment;

“environmental liability policy” means an insurance policy that covers the cost of restoring damage caused by coal operations, resulting in pollution of land, water, air, and biodiversity damage under the Act;

“flaring and venting” means controlled processes for the disposal of gas, essential for emergency and safety purposes on gas installations, and in

situations where it may not be feasible for the gas to be used, exported or re-injected;

“fugitive emissions” means any release of gases or vapours that leak from equipment, seals, pipelines, valves, tanks, open mine faces or during processing, handling or storage of coal or coalbed methane and are not captured by installed emission control systems;

“hazardous substance” means any chemical, waste, gas, medicine, drug, plant, animal or microorganism which is likely to be injurious to human health or the environment;

“incident” means an unexpected event or occurrence that does not result in serious injury or illness but may result in property or environmental damage;

“licence” means any document or instrument in writing granted under Energy Act, to any person authorizing the undertaking of coal and coal bed methane business;

“licensee” means a person who is a holder of a licence issued under these Regulations;

“permit holder” means a person who is a holder of a permit issued under these Regulations;

“risk” means the probability of occurrence of an adverse effect from a substance on people or the environment combined with the magnitude of the consequence of that adverse effect;

“safety case” means a document required under these Regulations demonstrating that there are effective means of reducing risk at a facility or during activities to the required level;

“safety zone” means a demarcated area established around a facility to protect workers, equipment, the public and the environment from potential hazards associated with coal operations;

Application

These Regulations shall apply to:

- a) Exploration, extraction, production, processing, transportation, storage, exportation, importation and sale of coal bed methane for use in energy production;
- b) Processing, value addition, transportation, storage, exportation, and importation of coal for use in energy production;
- c) Upstream coal activities including exploration, extraction and management of sale of coal which relate to the Ongoing Projects listed in paragraph 5 of the Fourth Schedule of the Act; and
- d) Coal common user and value addition facilities for use in energy production.

PART II – HEALTH AND SAFETY REQUIREMENTS

Safety Case

Safety application review

case 2. (1) A coal operator shall formulate a safety case and submit it to the Authority for approval three (3) months prior to any proposed coal activity.

(2) An application for the safety case approval referred to in (1) shall be-

- (a) in the Form set out in the First Schedule;
- (b) accompanied by proof of payment of fees as prescribed in Ninth Schedule.

(3) The Authority upon receipt of the application in (2) shall acknowledge receipt of the

safety case within seven (7) days in writing.

(4) The Authority shall consider the application within forty-five (45) days of receipt, and may;

- (a) require the coal operator to provide additional information related to the safety case or any other matter that the Authority may require in order to properly consider the safety case;
- (b) Approve safety case with or without condition;
- (c) Reject the application giving reasons in writing within seven (7) days.

(5) Where the Authority requests for more information, the coal operator shall provide the information required within twenty-one (21) days.

(6) The time period for processing the approval for safety case shall be paused until the additional information required is provided.

Amendment of safety case. a 4. (1) A coal operator shall notify the Authority in writing of its intent to amend the safety case if—

- (a) a significant change to the facility is proposed;
- (b) a particular operation or activity is proposed for which the safety case in force does not adequately consider the risks and the required control measures; or
- (c) a significant new risk, or a significant increase in an existing risk to safety or health, arises or is likely to arise and is not provided for in the safety case in force.

(2) On receipt of a notification under this regulation, the Authority shall communicate in writing prescribing timelines for submission of the amended safety case to the coal operator.

(3) A coal operator shall review its safety case and resubmit to the Authority for approval every three (3) years. The resubmission shall be accompanied by proof of payment of fees as prescribed in the Ninth Schedule.

Safety contents

case 5. The safety case referred to in regulation 3 shall contain the following information-

- (a) the relevant facility description and a description of the processes and activities that will take place at the facility;
- (b) a risk assessment and systematic identification of hazards;
- (c) a safety management system;
- (d) an emergency response plan;
- (e) established safety zone around the coal facility;
- (f) measures for performance monitoring and review; and
- (g) procedures and systems for maintaining accurate records;

Qualifications of safety case personnel

6. A coal operator shall ensure that the safety case is prepared by a person possessing the following qualifications:

- (i) bachelor's degree in environment, engineering, geology, safety or related field;
- (ii) be approved as a safety advisor by the

	Directorate of Occupational Safety and Health Services; (iii) membership in a relevant professional body and in good standing where applicable; (iv) be licensed as a lead Environment Impact Assessment expert by the National Environment Management Authority; and (v) has more than five (5) years' experience in risk assessment, hazard analysis or safety management.		mutual aid arrangements; and (g) provide for personnel training and testing of the emergency plan.
<i>Risk assessment</i>	7. (1) A risk assessment required in developing a safety case shall— (a) identify the likely incidents, hazards or accidents that may occur in relation to the activity or facility; (b) set out a detailed and systematic assessment of the risk associated with each of those hazards, including the likelihood and consequences of each incident; (c) analyse probable consequences of single failures or sequential failures in and connected to the activity or facility; (d) outline the acceptance criteria in relation to the risks being assessed; and (e) identify the measures that are necessary to reduce each of those risks. (2) A coal operator shall perform the risk assessment using qualitative, semi-quantitative or quantitative risk assessment method. (3) A coal operator shall provide justification for employing the selected methodology in each case.	<i>Offense penalty</i>	and 10. A coal operator who commences coal operations without an approved safety case commits an offence and shall on conviction be liable to the penalties prescribed in Section 115(1)(a) of the Act.
			<i>Safety of Coal Facilities</i>
		<i>Duties of a coal operator.</i>	11. (1) A coal operator shall put in place the following measures to ensure safety in the coal facility— (a) identify and assess the hazards related to coal operations; (b) minimise any risk to the safety and health of persons or any risk to public safety that may arise from operations and related activities; (c) minimise the effects of any incidents, hazards or accidents on human health and the environment; (d) ensure that adequate and appropriate recovery measures are put in place to deal with the effects of any incidents, hazards or accidents; (e) institute procedures that allow the continuing development of safety practices that reflect technological advancement and advances in best coal industry practices; and (f) adopt and implement necessary environmental protection measures;
<i>Safety management system.</i>	8. (1) The safety management system shall outline risk control measures selected to reduce the risk to an acceptable level and may consist of— (a) measures to reduce the probability of accidents or hazardous situations occurring; and (b) measures to mitigate the consequences of accidents or hazardous situations. (2) The control measures selected shall be informed by the most critical event scenario based on realistic severity and the realistic likelihood of occurrence. (3) A coal operator shall systematically follow up the implementation of the risk control measures and reassess the basic assumptions made in the risk assessment to ensure that safety is maintained.	<i>Facility management.</i>	12. (1) A coal operator shall ensure there is a safety officer with responsibility for environment, safety and health matters at each manned facility during operations. (2) The safety officer in sub-regulation (1) shall have the following qualifications: (i) A minimum of diploma in environmental occupational health and safety or related field; and (ii) At least two (2) years' experience in environmental health and safety management in mining or related field. (3) The safety officer shall ensure that— (a) the workers perform the operations in a safe manner in line with these regulations and best coal industry standards; (b) all tools and equipment are used in a safe manner; (c) all tools and equipment are maintained in a safe working condition; (d) the designated storage facility or area for tools and equipment is maintained in a safe manner; and (e) all tools and equipment are stored in a safe manner while not in use.
<i>Emergency response plan</i>	9. An emergency response plan in the safety case shall— (a) identify the potential emergency scenarios; (b) provide for the roles and responsibilities of persons in the facility and command structure in the event of an emergency; (c) provide for evacuation procedures; (d) provide for first aid and medical assistance services; (e) provide for communication systems in the event of an emergency; (f) provide for equipment availability and	<i>Manual of instructions</i>	13. (1) A coal operator shall prepare a manual of instructions for safety of the facility's operations and bring it to the attention of every worker or any other person participating in coal operations. (2) A worker or any other person participating in coal operations shall comply with the requirements of the manual of instructions

relevant to his or her duties.

(3) A coal operator shall revise and update the manual of instructions for the safety of facility's operations as need arises.

Personnel training

14. (1) A coal operator shall ensure that all workers involved in coal operations have operational and safety training to execute their roles;

(2) A coal operator shall annually carry out training needs assessment for their workers;

(3) A coal operator shall ensure that workers receive the necessary and specialised training identified in (2);

(4) A coal operator shall make all relevant safety and procedural documentation readily available and accessible to workers and to the Authority upon request.

(5) A coal operator shall ensure that all workers are informed and trained on updates introduced into the procedures and manuals that may impact—

(a) operations and maintenance;

(b) emergency situations and simulations;

(c) escape, evacuation and rescue;

(d) machinery safety;

(e) materials, products and equipment packaging, identification, storage and handling;

(f) results of any safety analysis;

(g) codes and signalling;

(h) communication and reporting practices;

(i) their preparedness and responses to emergencies; and

(j) any other matter relevant to operations.

(6) A coal operator shall provide training to workers upon employment, any transfer or change of work tasks, the introduction of new work equipment or changes to the equipment and upon introduction of new technology that applies to the worker's tasks.

Facility design and construction.

15. (1) A coal operator shall ensure that the design, engineering and construction of any facility is conducted in a manner to ensure the safety and wellbeing of persons present at or near the facility.

(2) A coal operator shall ensure that the design, engineering and construction of any facility is undertaken by a professional engineer.

(3) A coal operator shall ensure that the design of the facility takes into account, at a minimum, the following considerations—

(a) the local environment of the facility site;

(b) the requirements of Kenya's environmental laws and regulations including the requirements contained in these Regulations;

(c) the ability of the facility to withstand abnormal loads;

(d) the suitability of equipment and materials for their intended purpose;

(e) systems for the relief of excessive

pressure;

(f) classification of areas at risk of explosion, fire or collapse;

(g) the layout and distribution of equipment at the facility;

(h) protecting workers from the risks arising from the use of rotating and other hazardous machinery;

(i) the characteristics of confined spaces at the facility with respect to maintaining a safe atmosphere and eliminating the risk of ignition;

(j) the ventilation of spaces containing coal and, if necessary, equipping them with pressure relief valves and explosion protection panels;

(k) adequate lighting for operations in the facility;

(l) the use of systems to detect abnormal conditions and reduce the risk of release of hazardous substances and to contain any release;

(m) the suitability of the use of automatically operating safety equipment and installations to reduce the incidence and consequences of fire, explosion, escape of gas and other hazards;

(n) safe and easy access for inspection, testing and maintenance purposes; and

(o) any foreseeable changes in future operational conditions.

Testing

16. (1) A coal operator shall ensure that facilities and equipment are sufficiently tested prior to operation to establish their suitability, integrity and durability.

(2) A coal operator shall develop a programme of regular testing of facilities and equipment to ensure that the critical components of each system continue to work safely. The regular testing programme shall include instructions on—

(a) the required frequency of tests;

(b) the required methodology to perform the manner of performance of the tests; and

(c) the corrective measures that may be applied, and any other relevant recommendations.

Fire Prevention and Control

17. (1) A coal operator shall—

(a) conduct and maintain a fire risk assessment and controls in all facilities in accordance with Occupational Safety and Health (Fire Risk Reduction) Rules and National Fire Protection Association codes;

(b) install smoke, heat and fire detection alarm systems; and

(c) install and maintain fire suppression systems as recommended by the fire risk assessment undertaken.

(2) A coal operator shall ensure that underground facilities have dedicated fire-resistant refuge chambers with oxygen supply.

(3) A coal operator shall conduct annual fire audits in all facilities in accordance with

Occupational Safety and Health (Fire Risk Reduction) Rules 2007.		
<i>Ventilation</i>	18. A coal operator shall ensure that—	
	(a) all indoor facilities have mechanical ventilation and natural cross-ventilation;	
	(b) all underground or confined spaces have forced-air ventilation and continuous gas monitoring for asphyxiant gas levels; and	
	(c) the ventilation systems are active at all times.	
<i>Radiation.</i>	19. (1) A coal operator shall ensure that a facility is designed to minimise exposure of workers to radiation and to ensure that primary technical solutions which minimise exposure to radioactive substances are applied.	
	(2) A coal operator shall ensure that appropriate warning signs are present where radioactive substances are discovered, transported, handled, stored and disposed.	
<i>Working conditions under hazardous environment</i>	20. A coal operator shall ensure that working hours and shift schedules take into account the need to minimise periods of prolonged exposure of workers to hazardous conditions including exposure to—	
	(a) extreme temperatures;	
	(b) noise or vibrations;	
	(c) adverse weather and external atmosphere;	
	(d) dangerous emissions; or confined spaces.	
<i>Incident or accident notification and reporting.</i>	21. (1) In the event of any incident or accident-causing loss of life, personal injury, explosion, fire or damage to the environment or property, a coal operator shall notify the Authority and relevant government agencies of the incident or accident and in any case not later than 2 hours after—	
	(a) the time of the occurrence of the incident or accident; or	
	(b) the time a coal operator becomes aware of the incident or accident.	
	(2) A notification under sub-regulation (1) may be made electronically using form in the Second Schedule.	
	(3) A coal operator shall submit a written report within forty-eight hours of any incident or accident using the reporting template provided in Third Schedule.	
	(4) The Authority may, by notice in writing, require a coal operator to submit additional information on the reported incident or accident, if the initial report required in this regulation is deemed insufficient.	
	(5) A coal operator shall systematically investigate any incident or accident to find out its causes and report to the Authority and relevant government agencies within thirty (30) days.	
	<i>Equipment Safety</i>	
<i>Equipment and machinery.</i>	22. (1) A coal operator shall ensure that all tools, equipment and machinery used in coal operations are—	
	(a) designed, constructed, tested, installed, inspected and maintained safely in accordance with the approved standards and Coal Industry Best Practices;	
	(b) situated and positioned in the facility safely and appropriately in relation to their intended use and other proximate activities;	
	(c) of sufficient size and strength to withstand imposed stresses and to safely perform the functions for which they are to be used; and	
	(d) operated only by a qualified, trained or competent person.	
	(2) A coal operator shall ensure that—	
	(a) machinery, equipment and their components are in a safe condition during operation, repair, maintenance, testing and restart;	
	(b) all exposed and moving parts of machinery are enclosed, screened or railed off to prevent any worker or any other person from coming into contact with them;	
	(c) where power-driven machinery is used, each machine has a stopping device located within easy reach of the worker operating the machinery;	
	(d) every machine which is not individually motor driven is equipped with a clutch or other means of stopping the machine; and	
	(e) starting devices are arranged to prevent an incident, hazard or accident.	
	(3) A coal operator shall ensure that—	
	(a) any scaffolding, stage, walkway, working platform, stairway and ladder, whether temporary or permanent, are constructed and maintained in safe condition; and	
	(b) all hand tools are kept in a good state of repair.	
<i>Safety zones.</i>	23. (1) The coal operator shall establish safety zones surrounding or within a coal facility.	
	(2) The extent of each safety zone shall be as set out in Fourth Schedule	
	(3) No unauthorised person, vehicle or vessel shall enter, pass, stay or operate in the safety zone, without the permission of the coal operator.	
	(4) A coal operator shall ensure that safety zones are fenced and marked with warning signs in English, Swahili and local languages.	
	(5) The Authority may require a coal operator to establish a new safety zone or extend an existing safety zone where this is considered necessary to prevent or limit—	
	(a) risk of injury or loss of life;	
	(b) significant damage to facilities or surrounding property;	
	(c) pollution or other environmental damage; or	
	(d) substantial changes to production.	
<i>Offshore safety zones.</i>	24. A coal operator of a facility within a safety zone located offshore shall—	
	(a) alert a vessel about to enter a safety zone when it has no right to enter such area;	
	(b) alert vessels outside a safety zone if the vessels may constitute a danger to safety of the coal;	
	(c) to the extent possible, refuse to allow an	

unauthorised vessel entry into the safety zone;

(d) request the Kenya Maritime Authority to—

- (i) issue notices to mariners and navigational warnings under section 219 of the Merchant Shipping Act, 2009 about the safety zone;
- (ii) consent to temporary or permanent aids to navigation established under sub-section 221(2) of the Merchant Shipping Act, 2009 and necessary for the safety zone.

Notification.

25. A coal operator shall within forty-eight (48) hours inform the Authority in writing of any activity in or near a safety zone which may constitute danger to safety of coal operations, facilities, the public and personnel.

Asphyxiant gas.

26. (1) A coal operator shall institute measures to prevent the risk of release and accumulation of asphyxiant gases into a work environment.

(2) Prevention and control measures to reduce risks of asphyxiant gas release under sub-regulation (1) may include—

- (a) design and placement of asphyxiant gas venting systems according to approved standards and best coal industry practices;
- (b) installation of an automatic emergency shutdown system which can—
 - (i) detect and warn of the uncontrolled release of asphyxiant gases;
 - (ii) initiate forced ventilation;
 - (iii) minimise the duration of releases; and
 - (iv) implementation of confined space entry procedures as may be considered appropriate under best coal industry practices.
- (c) provision of self-contained breathing apparatus and supplied air respirators for every worker.

Noise and Vibrations.

27. (1) A coal operator shall ensure that a facility is operated in accordance with approved standards and best coal industry practices with respect to the presence of noise and vibrations.

(2) A coal operator shall ensure that a facility is operated in a manner that—

- (a) reduces the risk of injury to workers and the public due to exposure to noise and vibrations;
- (b) ensure that the noise level and acoustics do not preclude communication of significance to safety; and
- (c) ensures that the noise level in any worker break rooms, accommodation or recreation areas is reduced as much as possible.

(3) A coal operator shall continuously monitor and record noise and vibrations levels and shall make all records available to the Authority on request;

(4) A coal operator shall provide personal protective equipment at no cost to all persons exposed to hazardous levels of occupational noise and vibrations.

Lighting.

28. (1) A coal operator shall ensure adequate lighting for the performance of all work at the

facility.

(2) A coal operator shall ensure lighting at the facility complies with applicable national and international standards, taking into account—

- (a) the type of activity;
- (b) the suitable distribution of lighting appliances; and
- (c) the harmonisation of light colour with the prevailing context in the facility.

Chemicals and Hazardous Substances

Notification to the Authority.

29. (1) Where a coal operator intends to use chemicals or hazardous substances, shall provide a copy of the licence issued by the National Environment Management Authority under Environmental Management and Coordination Act (Management of Toxic and Hazardous Chemicals and Materials) Regulations 2024.

(2) A coal operator shall notify the Authority of all chemicals or hazardous substances present or likely to be present at facilities or to be used in operations using the form provided in Fifth Schedule—

- (a) thirty (30) days before the commencement of installation or operation of a facility;
- (b) every six (6) months after the initial notification under subparagraph (a); and
- (c) in relation to facilities existing at the date of commencement of these Regulations, within sixty (60) days from that date.

Handling of chemicals and hazardous substances

30. (1) A coal operator shall comply with all provisions of Environmental Management and Coordination Act (Management of Toxic and Hazardous Chemicals and Materials) Regulations 2024 and best coal industry practice on the importation, transportation, storage, use and disposal of chemicals, chemical products, chemicals and other hazardous substances.

(2) A coal operator shall maintain material safety data sheets for all chemicals and hazardous substances within the facility, following the format provided in the Sixth Schedule.

Operations involving hazardous substances.

31. (1) A coal operator shall maintain an up-to-date inventory of chemicals and other hazardous substances and products stored on premises or used in operations;

(2) A coal operator shall adopt measures to protect workers from exposure to chemicals and hazardous substances including—

- (a) displaying signs at appropriate distances warning of the presence of chemicals and other hazardous substances;
- (b) training workers in the safe use of chemicals and other hazardous substances;
- (c) providing suitable personal protective equipment;
- (d) ensuring first aid measures and emergency procedures are adopted in case of accident; and
- (e) providing toxic gas detection and protection systems with alarms.

Personal Protective Equipment

Hazard assessment

32. (1) A coal operator shall develop a hazard assessment report which assesses the workplace to determine the nature and extent of likely hazards

which necessitate the use of personal protective equipment.

(2) The hazard assessment report shall support the selection of personal protective equipment and shall, at a minimum, consider the use of the following—

- (a) head protection;
- (b) eye and face protection;
- (c) protective footwear and hand wear;
- (d) respiratory protection;
- (e) skin and special clothing;
- (f) fall-protection systems;
- (g) protection against drowning;
- (h) protection from extreme temperatures and
- (i) protection from excessive noise and vibrations.

(3) The hazard assessment report shall be updated at least once every year.

(4) A coal operator shall—

- (a) ensure that any person within the facility who is likely to be exposed to a hazard uses personal protective equipment in accordance with these regulations;
- (b) communicate personal protective equipment requirements to the workers; and
- (c) ensure that personal protective equipment provided to workers properly fit to perform their intended functions;

(5) A coal operator who fails to provide their workers with Personal Protective Equipment commits an offense and shall on conviction be liable to a fine of two hundred thousand shillings.

Training.

33. (1) A coal operator shall provide training on personal protective equipment and require workers to demonstrate a proper understanding of at least the following—

- (a) the situations necessitating personal protective equipment;
- (b) the relevant type of personal protective equipment for each situation;
- (c) any limitations of the personal protective equipment;
- (d) the proper use and adjustment of personal protective equipment; and
- (e) the proper care, maintenance, useful life and disposal of the personal protective equipment.

(2) A coal operator shall ensure that training is provided at regular intervals and that additional training is provided in situations where—

- (a) any changes in the work environment or in the nature of personal protective equipment used may necessitate further training to maintain an acceptable level of safety; or
- (b) a worker demonstrates any insufficiency in knowledge or use of assigned types of personal protective equipment.

Medical Examinations

Medical facilities and first aid services. 34. (1) A coal operator shall provide adequate first aid and emergency medical facilities to deal with incidents, hazards or accidents likely to occur in a facility or during coal operations.

(2) A coal operator shall—

- (i) undertake first aid needs assessment and revise it whenever there are changes in the processes;
- (ii) provide a first aid box, first aid station or first aid room as appropriate and affix a notice in every workroom including the name and contact of a person-in-charge of the first aid who shall be readily available during working hours; and
- (iii) provide appropriate first aid training, including refresher training, emphasising the safety of the person giving first aid as well as the safety of the person receiving first aid.

(3) A coal operator shall ensure availability of a sufficient number of persons competent in giving first aid.

(4) In addition to requirements under sub-regulations (1) and (2), a coal operator shall maintain—

- (a) a portable oxygen inhalation rescue apparatus in the facility or during coal operations; and
- (b) where the eyes or other parts of the body of a person may be exposed to injurious corrosive materials, suitable facilities for quick drenching or flushing of the eyes and body shall be provided within the work area for immediate emergency use.

Medical examinations for workers. 35. (1) A coal operator shall undertake medical examination to all workers before they are assigned work that is likely to have health risks, so that preventive measures can be implemented.

(2) A coal operator shall ensure that workers are offered regular medical examinations by a medical professional with training and experience in occupational health and at no cost to the worker to establish any effects or sickness arising from occupational hazards.

(3) The medical personnel shall notify a coal operator of any occupational disease or injury, and a coal operator shall not later than twenty-four (24) hours arrange for the necessary medical care to the worker.

(4) Where it is established that a worker has acquired a health condition due to hazardous exposure in his or her employment, the worker shall be offered treatment at the cost of a coal operator.

(5) Not limited to sub-regulations (1) to (4), the coal operator shall comply with other requirements of Factories and Other Places of Work (Medical Examination) Rules, 2005.

Information.

36. (1) A coal operator shall post and keep posted in accessible, conspicuous locations in a workplace, the following—

- (a) information regarding occupational disease or illness likely to be sustained or contracted in the workplace;
- (b) information regarding the location of first aid attendants, first aid stations and first aid rooms; and
- (c) A safety score board indicating all near

	misses, accidents and fatalities that have occurred in respective years in all of the premises held by a Coal operator.		
	(2) A coal operator shall ensure that an up-to-date list of telephone numbers for use in emergencies is available and conspicuous at every telephone location.	<i>Audit</i>	(2) A coal operator, shall ensure that Environmental Impact Assessment and Environmental Audit is undertaken in accordance with Environmental Management and Coordination (Environmental Impact Assessment and Audits) Regulations 2003.
<i>Emergency response</i>	37. During coal operations, a coal operator shall provide means for prompt transportation of injured persons to an equipped physician or hospital, or a communication system for contacting a readily available equipped ambulance service.	<i>Climate change obligations.</i>	41. (1) The coal operator shall establish and maintain an emission monitoring system capable of accurately measuring, recording and reporting emissions of air pollutants and greenhouse gases associated with coal operations. (2) A coal operator shall submit semi-annual reports to the Authority. (3) A coal operator shall put in place measures to control, minimise or offset greenhouse gases from the facility.
<i>Transport safety</i>	38. A coal operator engaging in transportation of coal or coal bed methane shall ensure that- (a) all vehicles are covered with tarpaulins to prevent windblown coal dust; (b) trucks and wagons are equipped with spill trays, fire extinguishers, and rear reflectors; (c) drivers are trained in hazardous material transport, with certifications retained on transit. (d) conveyors are fitted with emergency stop cables, spill containment skirts, and dust suppression covers; (e) pipelines - (i) are constructed of non-corrosive materials and buried to a safe depth as per Industry Best Practices. (ii) have pressure gauges and leak detection sensors installed at strategic points of the pipeline along the route; (iii) have valves remotely accessible and fireproofed.	<i>Surface and Groundwater Protection</i>	42. A coal operator shall- (a) conduct baseline hydrogeological studies and submit them to the Authority and Water Resource Authority prior to operations; (b) install upgradient and downgradient monitoring wells to track water quality during and after operations.
		<i>Water use and management</i>	43. (1) A coal operator shall ensure that- (a) all processing facilities maintain a water use and conservation plan; and (b) reuse and recycling of process water is prioritized. (2) A coal operator shall ensure that annual water audits are conducted and submitted to Authority and the Water Resources Authority.
<i>Health and Safety records</i>	39. (1) A coal operator shall maintain the following Health and Safety records- (a) incident and accident registers (b) safety performance and results; (c) medical examinations and medical surveillance records (retained for 20 years) of workers; (d) the outcome of equipment testing and inspections and auditing of safety procedures; (e) emergency response plan; (f) staff training; (g) persons at a facility; (h) Fire drills (i) Personal Protective Equipment (j) risk register; and (k) any other record as the Authority may require. (2) A coal operator shall provide workers and contractors with relevant information for their performance and health.	<i>Emissions</i>	44. During all coal operations the coal operator shall comply with Environmental Management and Coordination (Air Quality) Regulations 2024, on environmental protection including pollution prevention, air emissions, air quality monitoring and reporting.
		<i>Decommissioning.</i>	45. In executing decommissioning operations, a coal operator shall— (a) restore and remediate the relevant area to as near original state as possible or to such state as is otherwise provided in the approved final decommissioning plan; (b) ensure the removal, reuse, recycling and disposal of materials and equipment resulting from the dismantling of facilities; and (c) ensure correct handling, treatment, transport and final disposal of all the waste produced, in compliance with Sustainable Waste Management Act Cap. 387c, Environmental Management and Coordination (Waste Management) Regulations, 2024 and Coal Industry Best Practices.
		<i>Environmental restoration bond</i>	46. (1) A coal operator shall provide a deposit bond for the purposes of environmental mitigation and restoration in accordance with Environmental Management and Coordination Act Cap.387 (2) The Authority may in consultation with NEMA and lead agencies where deemed necessary, coordinate and evaluate the remediation and restoration works before attesting completion and discharging the Coal operator.
		<i>Environmental</i>	47. A coal operator shall provide an

PART III – ENVIRONMENTAL PROTECTION

Environmental impact assessment and Environmental 40. (1) A coal operator shall obtain an environmental impact assessment licence from National Environment Management Authority in relation to the proposed project.

<i>Liability Policy</i>	Environmental Liability Policy in accordance with the Act in the form prescribed in the Seventh Schedule.	assessment of possible Naturally Occurring Radioactive Materials;
	<i>Waste Management</i>	
<i>Waste management obligation</i>	48. A coal operator shall ensure that waste deriving from coal operations and any other associated operational wastes is managed in accordance with the Sustainable Waste Management Act Cap. 387c, Environmental Management and Coordination (Waste Management) Regulations, 2024 and best coal industry practice.	(b) evaluation of naturally occurring radioactive materials management options for both existing and future Naturally Occurring Radioactive Materials waste and selection of the optimum option; and
<i>Waste management plan.</i>	49. A coal operator shall develop waste management plan in accordance with applicable Waste Management Guidelines recommended by the Authority.	(c) implementation of the optimum option for each Naturally Occurring Radioactive Materials stream.
	Coal Industry Waste	(4) A coal operator shall retain updated records related to the radiation exposure levels of equipment and the disposal of Naturally Occurring Radioactive Materials waste for a period of not less than ten (10) years.
<i>Coal Bottom Ash, Slag, and Fly Ash</i>	50. (1) A coal operator shall identify and evaluate feasible options for the reduction, recycling and reuse of coal industry waste generated and implement the most suitable option as part of the facility's waste management plan. (2) A coal operator shall before re-cycling and re-using coal industry waste emanating from the coal industry seek approval from Authority and NEMA.	<i>Industrial Process Wastewater</i> 54. A coal operator shall ensure;
		(a) prevention of accidental releases of liquids through inspections and maintenance of storage and conveyance systems, including stuffing boxes on pumps and valves and other potential leakage points, as well as the implementation of spill response plans;
		(b) provision of sufficient process fluids let-down capacity to maximize recovery into the process and to avoid massive process liquids discharge into the oily water drain system; and
<i>Coal Storage Sludge and Spent Catalysts</i>	51. A coal operator shall ensure that- (a) coal dust sludge generated from coal operations is dried and reused or recycled where feasible; (b) handling and transport of all sludge be conducted according to the Environmental Management and Coordination (Waste Management) Regulations 2024 and Coal Industry Best Practices; and (c) spent catalysts resulting from catalyst bed replacement be returned back to the manufacturer for regeneration.	(c) design and construction of wastewater and hazardous materials storage containment basins with impervious surfaces to prevent infiltration of contaminated water into soil and groundwater.
<i>Flowback fluids.</i>	52. (1) A coal operator shall ensure that all flowback fluids are managed in accordance with Environmental Management and Coordination (Water Quality) Regulations 2024 and Coal Industry Best Practices. (2) A coal operator shall evaluate and integrate into design feasible alternatives for the management and disposal of flowback fluids different and separate from those of produced water including— (a) temporary storage in sealed tanks for reuse in further hydraulic fracturing operations; and (b) temporary storage prior to injection into a suitable disposal well.	<i>Industrial Process Wastewater treatment</i> 55. A coal operator shall ensure that the techniques for treating industrial process wastewater include source segregation and pre-treatment of concentrated wastewater streams in accordance with Environmental Management and Coordination Act (Cap.387) and the Coal Industry best practices.
		<i>Coal Washout</i> 56. A coal operator shall put measures to prevent storm water contamination and leachates as a result of contaminations from coal storage areas including; (a) engineered drainage system; and (b) installing sediment traps (c) treatment of washout before discharge
		<i>Flaring, Venting and Fugitive Emissions</i>
<i>Naturally occurring radioactive materials (NORM)</i>	53. (1) A coal operator shall develop a Naturally Occurring Radioactive Materials management plan prior to commencement of coal operations to ensure appropriate handling and management procedures on all aspects of Naturally Occurring Radioactive Materials. (2) A coal operator shall submit for approval to the Authority a Naturally Occurring Radioactive Materials Management Plan. (3) A Naturally Occurring Radioactive Materials Management Plan shall include the following— (a) identification, characterisation and	<i>Venting and flaring approval.</i> 57. (1) A coal operator shall apply for a permit to vent or flare natural gas in the course of the conduct of coal operations to the Authority. (2) The application in sub-regulation (1) shall be- (a) made in writing at least two (2) months before commencement of operations or of each calendar year; (b) In the form prescribed in the Eighth Schedule. (c) Accompanied with - (i) a fee set out in Ninth Schedule (ii) a copy of emissions licence from National Environmental Management Authority (3) The Authority upon receipt of the application shall within thirty (30) days-

	(a) approve the application; (b) request for more information or documentation to support the application; and (c) reject the application giving reasons to the coal operator. (4) Where a coal operator vents or flares natural gas without a permit in sub-regulation (1) due to an emergency or for safety reasons, the coal operator shall- (a) notify the Authority within 24 hours; and (b) provide a written report on the incident within seven (7) days. (5) A coal operator shall not vent or flare natural gas during coal operations except with prior authorization of the Authority in consultation with the National Government agency responsible for environment and safety. (6) A coal operator who contravenes the provisions of this regulation commits an offence and shall upon conviction be liable to a fine of one million shillings.	(b) venting and flaring; (c) current analysis report of emission levels; (d) radiation exposure levels and disposal; and (e) solid and liquid waste management
<i>Amendment of flaring and venting permit</i>	58. Where a coal operator wishes to make any change to the conditions of an existing permit, a coal operator shall apply to the Authority for approval of the changes on flaring and venting permit.	<i>Stakeholder Engagement</i>
<i>Suspension or termination of flaring and venting permit.</i>	59. (1) The Authority may suspend or terminate permit to flare and vent if— (a) there are changes in the information originally furnished for issuance of the permit; (b) there are substantial violations of the terms and conditions of the permit; or (c) the applicant has misrepresented any material facts during the application process. (2) Where the Authority proposes to suspend or terminate a permit to flare and vent under this regulation, the Authority shall provide fourteen (14) days' notice to the permit holder to comply with the terms and conditions of the permit. (3) The Authority shall- (a) provide reasons for suspension or termination; and (b) ensure that the permit holder has an opportunity to respond to the Authority's reasoning for taking the proposed action with respect to the permit.	62. (1) A coal operator shall ensure Stakeholder engagement is done throughout the project lifecycle, from siting and design to decommissioning as guided by the constitution of Kenya. (2) A coal operator shall prepare a Stakeholder Engagement Plan (SEP) consistent the constitution of Kenya and coal industry best practice. (3) A coal operators shall disclose Environment Health and Safety risks, planned control measures, emergency response plans, and accident reporting protocols in a language and format accessible to stakeholders. (4) A coal operator shall establish a transparent and responsive grievance redress mechanism.
<i>Fugitive emissions control plan.</i>	60. (1) A coal operator shall submit to the Authority a fugitive emissions control plan approved by the National Environment Management Authority. (2) The Authority may direct a coal operator to carry out additional actions during operations to manage fugitive emissions if the Authority determines that additional actions are necessary to mitigate potential risks to the environment or safety.	PART IV – INSPECTIONS, CONTROL AND ENFORCEMENT
<i>Environmental Records</i>	61. (1) A coal operator shall keep and maintain records of- (a) all environmental licences, permits and reports;	<i>Periodic Environment Health and Safety Inspections</i> 63. (1) A coal operator shall conduct internal Environment Health and Safety audits annually. (2) The audit in (1) shall evaluate compliance with these regulations. (3) The Authority shall conduct scheduled and unscheduled inspections. (4) A coal operator shall submit to the Authority a Corrective Action Plan for any non-compliance identified. <i>Enforcement orders.</i> 64. With the written approval of the Authority, an inspector may issue enforcement orders as provided under Section 11 of the Energy Act— (a) requiring facility operators to cease activities polluting or likely to pollute the environment in violation of the provisions of these Regulations; (b) requiring facility operators to implement any remedial measures to restore the environment within such reasonable time as determined by the Authority; (c) ordering the closure of facilities polluting or likely to pollute the environment in violation of the provisions of these Regulations; (d) requiring the installation of any equipment on any land, premise, or vehicle for purposes of monitoring compliance with the provisions of these Regulations, upon giving the owner or occupier of the land three (3) months' written notice; and (e) revoking permits issued by the Authority in accordance with these Regulations. <i>Failure to comply with enforcement orders.</i> 65. If a coal operator fails to comply with the enforcement order commits an offence and shall upon conviction be liable to fines as provided for in section 115 of the Act. PART V – MISCELLANEOUS <i>Disputes and Appeals</i> 66. Any person aggrieved by a decision or order of the Authority may appeal to the Tribunal in accordance to Section 24 of the Act. <i>Grievance Redress</i> 67. Any complaint placed to the Authority shall be addressed to as per the Authority's complaints

and dispute regulations on conflicts.

FIRST SCHEDULE

(r.2)

SAFETY CASE APPLICATION FORM

Safety case applications shall follow the guidance given by the Authority and shall be accompanied by this cover sheet.

Facility Details	
Facility Name(s)	
Facility type:	
Key functions:	
Location	

Submission			
Document title:			
Document No.:		Revision:	Issue Date
Development stage:	(e.g. design, construction, modification....)		
Reason for Submission	The reason why the safety case is being submitted including whether it is being submitted for the first time, or is a material change of a previous safety case)		
Supporting documents			
Document title:			
Document No.:		Revision:	Issue Date
Document title:			
Document No.:		Revision:	Issue Date
(repeat rows as necessary)			

Difference from previously submitted Safety Case (if applicable) Outline the changes made to the safety case or notification from a previously submitted version if relevant

Applicant			
Name:		Signature:	
Position:		Date:	
Postal address:			
Email:			
Phone number(s):	(tel.)	(mob.)	
On behalf of:	(Name of operator)		
Coal Agreement			

The safety case application shall be submitted with one signed original, one additional hard copy and two electronic copies. Electronic documents submitted shall be a single, text searchable, indexed Portable Document Format (PDF) file, which is clearly labelled and in A4 format.

SECOND SCHEDULE

(r.21)

INCIDENT AND ACCIDENT REPORTING TEMPLATE

Initial Report (to be submitted electronically)

A. Reporting Entity Details	
i) Name of Owner/Operator:	
Company Name:	
License Number:	
Environment Liability Policy:	
ii) Incident Reporter	
Name:	
Phone Number	

Mobile Number:	
Designation:	
iii) Contact Project proponent:	
Name:	
Phone Number:	
Email Address:	
Designation:	
B. Incident Details	
Incident Date (dd-mmm-yyyy)	
Incident time (hh:mm)	
Reporting Date (dd-mmm-yyyy)	
Reporting Time (hh:mm)	
Incident Reference Code	
Criteria Triggering the Reporting of the incident*	
A short and General Description of the incident	
Initial response measure undertaken	
Support Required from the Authority/ Government Agency	

* Criteria Triggering the Reporting of the incident

1. Loss of life or personal injury occasioned by entry into land for exploratory, survey, infrastructure development and maintenance activities;
2. Damage to property amounting to approximately Kes 1,000,000 and above, caused by any irregularity, trespass, or other wrongful proceedings occasioned by entry into land for exploratory, survey, infrastructure development and maintenance activities; or
3. Damage to property amounting to approximately Kes 1,000,000 and above, occasioned by the breaking of any coal infrastructure or by reason of any defect in such infrastructure

THIRD SCHEDULE

(r.21)

Incident and Accident Reporting Template: Reported in writing within 48 hours.

Energy (Coal & Coalbed Methane Environment, Health and Safety) Regulations, 2026	
Notice of Accident or Incident	
Date:	
To:	The Director General Energy and Petroleum Regulatory Authority
A. Reporting Entity Details	
Name of Owner/Operator:	
Company Name:	
License Number:	
Environment Liability Policy:	
Incident Reporter:	
Name:	
Phone Number	
Mobile Number:	
Designation:	
Contact Project proponent:	
Name:	
Phone Number:	
Mobile Number:	
Designation:	
Contractor Name:	
Name of person filing notice:	
Contact details of person filing notice:	
B. Incident/accident Details	
Date:	Time:

Location:			
Nature of incident/accident			
Description of the incident/accident			
Measures taken to prevent the incident/accident			
Measures taken to mitigate the effects of the incident/accident			
Measures taken to secure the location from further incident/accident			
Injuries (if applicable)			
Injuries incurred?	(Y/N)	Total	
Details of Injuries			
Name of injured person			
Nature of injuries			
First aid application:			
Person giving first aid:			
Location:			
Measures applied (including time):			
Any additional details:			
(Repeat rows as necessary)			
Casualties (if applicable)			
Casualties occurred?	(Y/N)	Total	
Details of casualties			
Names of deceased person			
Nature of injuries sustained			
First aid application:			
Person giving first aid:			
Location:			
Measures applied (including time):			
Any additional details:			
(Repeat rows as necessary)			
Contact details			
Provide contact information and the current location (e.g. facility, treatment centre etc) for each injured person and current location for interview			
Witness details (if any)			
Provide:			
- name(s) of witnesses			
- contact details for witnesses			
- copies of any statement given by a witness in relation to the incident or accident			
(Repeat rows as necessary)			
Signed:			

Please attach any information that is relevant to the incident/accident or any other additional information the authority may require.

FOURTH SCHEDULE

(r.23)

Safety Zone Distances – Coal and Coal Bed Methane Facilities.

These safety zone distances shall be maintained between coal and coalbed methane facilities and sensitive receptors to safeguard life, property, and the environment in accordance with Energy Act, Cap.314 (Sections 107–109: safety, technical compliance), Occupational Safety and Health Act, Cap.514, Environmental

Management and Coordination Act (EMCA) Cap.387 and Coal Industry Best Practices.

Mandatory Safety Distances

Facility or Hazard Source	Minimum Safety Distance	Applies To
Surface coal mine edge to public infrastructure	300–500 meters	Coal
Coal processing plant to residential areas	500 meters	Coal
Power plants to residential areas	1000 meters	Both
Coalbed Methane wellhead to residential or public buildings	500 meters	Coalbed Methane
Coalbed Methane flare or vent stacks to community areas	1,000 meters	Coalbed Methane
Drilling sites to surface water bodies	300 meters	Coalbed Methane
Coal storage yards to schools or hospitals	300 meters	Coal
Blasting zone from surface mines	500–1,000 meters	Coal
Underground shafts to water bodies	100–300 meters	Coal
Coalbed Methane drilling to existing boreholes or springs	200 meters	Coal Bed Methane
Coal ash or slurry temporal holding site to surface water	500 meters	Coal
Access roads to settlements	100 meters	Both
Explosive storage magazines to settlements	1,000–1,500 meters	Both
High-pressure Coalbed Methane pipelines	300–500 meters	Coalbed Methane
Wastewater or produced water holding ponds	200–500 meters	Both
Coal-fired boiler stacks	500 meters	Coal
Emergency assembly or muster points	50–100 meters	Both
Vehicle fuelling or diesel tanks	100–150 meters	Both
Water abstraction wells	250–300 meters	Both
Power substations or switchyards	100–200 meters	Both
Worker accommodation camps	200–300 meters	Both
Ecologically sensitive areas	500–1,000 meters	Both
Open flare pits or incinerators	300–500 meters	Both
Fault lines or geological hazards	200–500 meters	Both
Seasonal floodplains or water paths	100–300 meters	Both

FIFTH SCHEDULE

(r.29)

Chemical and Hazardous Substances Report Form

Each notification to the Authority concerning all hazardous substances present or likely to be present at the facilities or to be used in operations shall employ the form outlined in this schedule.

NOTIFICATION OF HAZARDOUS SUBSTANCES PRESENT OR LIKELY TO BE PRESENT AT FACILITIES OR TO BE USED IN OPERATIONS

Date:

To: Energy and Petroleum Regulatory Authority

Contractor

Address:

Facility:

	Substance trade name	Harmonized System (HS) code	Quantity of substance	Reason for use of substance	Quantity increased since previous report	Reason for increase
1						
2						
3						
4						
5						
6						...

(add rows as necessary)

Signed:

Name:

Position:

On behalf of:
(name of contractor)

SIXTH SCHEDULE

(r.30)

SAFETY DATA SHEET
Information on SDS should be provided in the order provided below.
1. Identification
2. Hazard identification
3. Composition / information of ingredients
4. First-aid measures
5. Fire-fighting measures
6. Accidental release measures
7. Handling and storage
8. Exposure controls / personal protection
9. Physical and chemical properties
10. Stability and reactivity
11. Toxicological information
12. Ecological information
13. Disposal considerations
14. Transport information
15. Regulatory information
16. Other information.

SEVENTH SCHEDULE

(r.47)

ENVIRONMENT LIABILITY POLICY

(NAME OF COMPANY) is committed to the protection and preservation of the environment. We will continuously improve our performance and initiate additional projects and activities that will further reduce our impacts to the environment.

Our commitment to the environment extends to our customers, our staff and the community from where we operate. We are committed to:

- Complying with all applicable environmental preservation and sustainability legislation;

- Preventing pollution whenever possible through efficient waste management strategies that promote waste minimization, re-use, recovery, recycling, as appropriate;
- Promoting and continually investing in technologies that provide alternatives to business travel and transport;
- Adopting a procurement programme which takes into account the environmental impact of products and services;
- Promoting the protection and enhancement of biodiversity and ecosystems through employee awareness programs and stakeholder engagement;
- Ensuring our staff are aware of the environmental impacts of their work activities and encouraging them through regular awareness and training to minimize those impacts;
- Communicating our environmental commitment and efforts to our customers, staff and the community; and
- Pursuing a programme of continuous improvement by reviewing our Environmental Management System and related objectives and targets, policies and practices.
- Reporting to the relevant State bodies, accidents or incidents causing pollution of the environment, investigating the accidents/incidents and undertaking clean up or restoration of the affected areas.

Signature:

Designation:

Stamp/Seal:

Review date:

This policy will be reviewed on a regular basis to evaluate continued relevance and to monitor compliance.

EIGHTH SCHEDULE

(r.57)

APPLICATION FORM FOR VENTING OR FLARING PERMIT

This application is hereby submitted under the Energy (Coal and Coal Bed Methane Environment, Health and Safety) Regulations, 2026, for the venting or flaring permit.
Applicant name: (full corporate name)
Coal Agreement/License name and number:
Address: (full corporate address)
Phone number:
Email address:
Type of permit requested:
Proposed commencement date of the permit:
Proposed termination date of the permit:
Estimated volumes requested to be vented or flared:
Enclosed documents: (tick the boxes as appropriate) ☐ copy of registration documents ☐ sources of vented or flared gas ☐ information supporting need for venting or flaring (safety of venting and impossibility of flaring) ☐ methodology to measure or estimate vented or flared gas ☐ all relevant environmental licences and reports as may be required by law; ☐ other supporting documents (specify)
Declaration: 1. I hereby confirm that the information provided in this

application is to my knowledge true and accurate.
2. I understand that it is an offence to give false information in an application for a venting and/or flaring approval.
3. I acknowledge that our company shall conduct coal production operations as approved by the Authority and other state bodies of Kenya.
4. I acknowledge that our company shall not commence and conduct any unauthorized venting and/or flaring operations prior to obtaining an approval from the Authority
Date: (dd-mm-yyyy)
Authorised Applicant's representative (full name)
Authorised Signature: (Applicant's representative)

NINTH SCHEDULE

(r.2,4 & 57)

APPLICATION/PERMIT FEES

Regulation	Item	Fee in Ksh.
3	Safety Case Application	10,000,000
4	Safety Case Renewal	5,000,000
57	Flaring and Venting	20,000,000

Legal Notice No.....

THE ENERGY ACT

(Cap. 314)

ENERGY (COAL & COAL BED METHANE) REGULATIONS,
2026

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Second Schedule (r.4(4)) - Ongoing Projects Areas Map

Third Schedule (r. 18(2), 23(2), 26(4), 40(4), 41(2), 42(2), 46(5), 47(5), 48(9), 54(2))-

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Fourth Schedule (r.19(3), 25(1), 26(2), 28(1)) - Requirements for Applications of Licences and Permits

Fifth Schedule (r. 19(3), 26(3), 21(2)) - Fees and Charges

Sixth Schedule (r.21) – Forms of Licences

THE ENERGY ACT

(Cap. 314)

IN EXERCISE of the powers conferred by sections 116 and 208 of the Energy Act (Cap.314), the Cabinet Secretary for Energy makes the following Regulations

ENERGY (COAL & COAL BED METHANE) REGULATIONS,
2026

		PART I - PRELIMINARIES
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Citation and Commencement	1.	(1) These Regulations may be cited as the Energy (Coal & Coal Bed Methane) Regulations, 2026. (2) These Regulations shall come into force upon gazettment by the Cabinet Secretary.			laws, regulations and other policy mechanisms concerning environmental issues “ <i>Exploration</i> ” means activities carried out in coal blocks for data acquisition using geological, geochemical, geophysical exploration and appraisal wells or any other method with a view to locating and confirming the existence and viability of coal and coal bed methane. “ <i>Extraction</i> ” means the process of removing the coal or coal bed methane from the ground either by surface or underground mining. “ <i>Feasibility study</i> ” means a detailed assessment of a coal project covering resource estimates, mining plan, economic viability, environmental, health, safety and social impacts with mitigation measures, development timelines, and decommissioning and remediation plans. “ <i>Kenya Standard</i> ” means the specification or code of practice provided under the Standards Act, CAP 496. “ <i>Liaison Committee</i> ” means the Local Community Liaison Committee established in regulation 5 (1) of these regulations “ <i>Licence</i> ” means any document or instrument in writing granted under this Act, to any person authorizing the undertaking of coal business. “ <i>Licensee</i> ” means a person who is a holder of a Licence or permit issued under these Regulations. “ <i>Licensing authority</i> ,” means any person or body, including the Authority, with powers to grant, revoke or suspend a licence under the Act. “ <i>Load port</i> ” means the immediate previous country of origin where the coal or coal bed methane was loaded. “ <i>Local community</i> ” has the meaning as defined in the Act. “ <i>Person</i> ” has the meaning as defined in the Act. “ <i>Permit</i> ” has the meaning assigned to it under the Act. “ <i>Premises</i> ” has the meaning assigned to it under the Act. “ <i>Professional engineer</i> ” means a person registered by the Engineers Board of Kenya under the Engineers Act to practice as an engineer “ <i>Tribunal</i> ” has the meaning as defined in the Act; and “ <i>Vehicle</i> ” has the meaning assigned to it under the Traffic Act, CAP 403.
Application of the Regulations	2.	(1) These Regulations shall apply to: a. Exploration, extraction, production, processing, transportation, storage, exportation, importation and sale of coal bed methane for use in energy production. b. Processing, value addition, transportation, storage, exportation, and importation of coal for use in energy production. c. Upstream coal activities including exploration, extraction and management of sale of coal which relate to the Ongoing Projects listed in paragraph 5 of the Fourth Schedule of the Act; and d. Coal common user and value addition facilities for use in energy production. (3) For avoidance of doubt, these Regulations shall not apply to mineral rights issued under the Mining Act, Cap. 306 for coal use outside energy production.			
Interpretation	3.	In these Regulations, unless the context otherwise requires — “ <i>Advisory Committee</i> ” means the <i>National Advisory Committee on Coal and Coal Bed Methane</i> constituted under Regulation 4(1). “ <i>Coal business</i> ” means the exploration of coal bed methane, extraction, production, processing, import, export, storage, sales, utilization, construction of common user facilities, transport of coal and coal bed methane and its derivatives “ <i>Coal products</i> ” means products and by-products obtained from use or industrial processing of coal. “ <i>Coal value addition facility</i> ” means any facility that is used for any activity that increases the benefit of coal. “ <i>Block</i> ” means an area demarcated and published by the Government for exploration and extraction of coal, and coal bed methane. “ <i>Concession</i> ” means the right to exploit coal and coal bed methane resource pursuant to an agreement between the Government and the Concessionaire issued under national legislation/these regulations “ <i>Common user facility</i> ” means a facility owned and maintained by a licensed person which may be used by authorized and licensed third parties for coal or coal bed methane activities. “ <i>Concessionaire</i> ” means the holder of a Concession. “ <i>Energy production facility</i> ” means a facility that uses coal or coal bed methane to generate electricity and/or produce energy “ <i>Environmental liability policy</i> ” means a statement of commitment by a party to the			
PART II: UPSTREAM COAL AND COAL BED METHANE					
National Advisory Committee Coal and Coal Bed Methane	4 (A)	(1) In managing the Ongoing Projects under the Fourth Schedule of the Act, the Cabinet Secretary shall constitute a National Advisory Committee on Coal and Coal Bed Methane (2) The functions of the Advisory Committee shall be to. a. advise the Cabinet Secretary on			

		strategic direction for the development and utilization of coal and coal bed methane . b. advise the Cabinet Secretary during the negotiation of and entering Concessions c. upon the recommendation of the Authority, advise the Cabinet Secretary on the suspension, revocation or termination of Concessions d. perform such other functions and duties in accordance with this Act or any other written law. (3) The Committee shall comprise of: a. Principal Secretary responsible for Energy or their authorized representative, who shall be the chairperson. b. Principal Secretary responsible for Mining or their authorized representative. c. Principal Secretary National Treasury or their authorized representative. d. Director General of the National Environment Management Authority or their authorized representative. e. Director General of the Energy and Petroleum Regulatory Authority or their authorized representative, who shall be the secretary f. Representative of the Council of Governors. g. The Attorney General or their authorized representative. h. The technical officer in charge of coal at the ministry responsible for coal. (4) Where technical expertise is required, not more than four (4) technical experts may be co-opted as the Advisory Committee may determine from time to time (5) The technical expert(s) co-opted to the Advisory Committee shall have the following qualifications: a. Satisfy the requirements of Chapter 6 of the Constitution of Kenya, 2010 on leadership and Integrity. b. Possess a minimum qualification of a bachelor's degree from a recognized university; And c. Possesses at least ten (10) years' relevant experience		energy b. the Ministry responsible for mining c. the Energy and Petroleum Regulatory Authority d. the Kenya Bureau of Standards. e. the Kenya Revenue Authority f. the Kenya Ports Authority g. county governments and h. such other public bodies or agencies as the engaged in coal and coalbed methane (2) Each institution shall perform its functions in accordance with its respective legal mandate and shall collaborate under a joint coordination framework established by the Cabinet Secretary. (3) The Authority shall act as the lead agency for technical and economic regulation of coal and coal bed methane for energy production, while ensuring harmonization of licensing, environmental, safety, and quality standards across relevant agencies. (4) The Cabinet Secretary shall establish an Inter-Agency Coordination Framework for information sharing, compliance monitoring, and dispute resolution among the relevant institutions. (5) The Coordination Framework under sub-regulation (4) shall— (a) outline procedures for joint inspections and data reporting; (b) promote harmonized licensing and permitting processes; (c) ensure public access to coal-related information; and (d) prevent duplication of mandates and regulatory conflicts. (6) Where a conflict arises between the mandates of institutions involved in the management and governance of coal and coal bed methane for energy production, the Cabinet Secretary shall, in consultation with the affected institutions, issue administrative directions for the resolution of such conflict, consistent with the Act and any other applicable written law
Institutional Mandates and Coordination	4 (B)	(1) The management, regulation, governance and development of coal and coal bed methane for energy production shall involve coordinated actions among the following institutions- a. the Ministry responsible for	Local Community Liaison Committee	5. (1) The Cabinet Secretary, in consultation with the relevant county government and the National Government representative in charge of administration at the County, may establish a Local Community Liaison Committee. (2) The Liaison Committee's terms of reference will be: a) liaise, assist in coordinating sensitization and awareness campaigns between implementing agencies and the community. b) initiate proposals on activities to be reviewed as part of corporate social responsibility projects;

		and c) any other matter that may be prescribed by the Cabinet Secretary (3) The Liaison Committee shall serve for a period in a manner as prescribed by the Cabinet Secretary (4) The membership of the Liaison Committee shall be elected from the local community and shall include representation from the vulnerable groups. (5) The Liaison Committee will develop its rules of procedures			and mitigation measures in accordance with the provisions of the relevant laws. v. Stakeholder involvement and supporting documents vi. Legal and regulatory compliance vii. Plan for the construction, installation, and safe operation of the coal development. viii. Decommissioning, remediation, and redevelopment plan; and ix. A risk mitigation plan x. Local content plan in accordance with section 206 of the Act.
Constitution of Coal and Coal Bed Methane blocks	6.	(1) The Cabinet Secretary shall undertake pre-feasibility study for the purposes of delineation of areas with potential coal and coal bed methane resources. (2) The Cabinet Secretary, in consultation with relevant agencies, may designate any area of land for purposes of exploration, development and production of coal and coal bed methane which shall be defined by specific geographical co-ordinates, and each area shall be described as a "Block". (3) The Cabinet Secretary shall publish such an area designated in sub-regulation (2) by notice in the Gazette. (4) The Cabinet Secretary may reserve any number of blocks for strategic use by the National Government.			(2) The Concessionaire shall submit the feasibility study report to the Cabinet Secretary. (3) The Cabinet Secretary, in consultation with the Advisory Committee, shall review the feasibility study report within thirty (30) days of submission (4) The Cabinet Secretary may, upon conclusion of the review in sub-regulation (3), approve the feasibility study report. (5) The Cabinet Secretary shall, within thirty (30) days of the approval of a feasibility study, submit the Concession to Parliament for ratification in accordance with Article 71 of the Constitution.
Concessions	7.	(1) The Cabinet Secretary shall make available blocks for energy resources development through Concessions (2) The Concessions in sub-regulation (1) shall be issued using a method which includes the following: a) Public Procurement and Asset Disposal Act (Cap.412C) or, b) Public Private Partnerships Act (Cap.430) (3) The negotiations for Concessions shall cover the rights and obligations of the Government of Kenya and of the Concessionaire.	Extraction and Production	9.	(1) The Concessionaire shall acquire the required coal mining licences and permits in accordance with the relevant mining laws and standards. (2) The Concessionaire shall acquire the required coal bed methane mining licences and permits in accordance with the Act.
Feasibility Study	8.	(1) For upstream coal projects, the Concessionaire shall carry out a comprehensive feasibility study encompassing the following: i. Resources assessment. ii. Financial and economic viability iii. Proposals for the development of and production of coal. iv. An assessment of the environmental, health, safety and social impacts associated with such development	Transfer of a Concession	10.	(1) A Concessionaire shall not transfer or otherwise assign any rights, powers or obligations conferred or imposed upon the Concessionaire by the concession without the consent of the Cabinet Secretary. (2) The application for transfer shall be done to the Cabinet Secretary accompanied by the relevant supporting documentation. (3) A concession may be transferred on the following grounds: a.) In the case of bankruptcy of the Concessionaire or assignment for the benefit of the Concessionaire's creditors generally, to the lawfully appointed administrator, trustee or assignee. b.) In the case of a corporation in liquidation, to the lawfully appointed liquidator. c.) In any case where the Concessionaire becomes subject to a legal disability, to any person lawfully appointed to administer the Concession's affairs. d.) In the case of voluntary transfer of the undertaking, to the new owner

		of the undertaking. (4) The Cabinet Secretary shall be satisfied that the transferee meets requisite legal, technical and financial competence to carry out the undertaking. (5) The transferee shall undertake in writing to comply with the conditions of the concession (6) The transferor shall comply with the tax provisions for transfer prior to making the application to the Cabinet Secretary. (7) The Cabinet Secretary shall not withhold any consent to any application to transfer unless there is reason to believe that public interest is likely to be prejudiced by the transfer.
Discovery of other minerals	11.	The Concessionaire shall report the discovery of any other mineral to the Cabinet Secretary responsible for mining in accordance with the Mining Act, CAP 306 and the Cabinet Secretary.
Reporting and Monitoring	12.	(1). The Concessionaire shall adhere to the reporting requirements spelt out in all the relevant laws and regulations. (2). The Authority shall from time to time carry out inspection and monitoring for compliance
Exploration, Extraction, production and processing of Coal Bed Methane	13.	(1) A person who wishes to undertake exploration, extraction, production and processing of coal bed methane and derivatives shall do so in accordance with the terms and conditions of a valid licence issued by the Authority. (2) A person who contravenes this regulation commits an offence and shall, where no fine or penalty thereof is expressly set out in the Act, be liable on conviction to the applicable fines set out in the Third Schedule.
Sale of Coal	14.	(1) The Concessionaire shall not sell the following without the authorization of the Authority: a) Any raw or value-added coal. b) Any by-product of coal. (2) Where the coal is sold locally, the Concessionaire shall prioritize such sales to other licensed energy producers. (3) Such a sale in sub-regulation (2) shall abide by relevant National and County laws and regulations. (4) The Cabinet Secretary may suspend or terminate the Concession of the Concessionaire who contravenes sub-regulation 1, 2 or 3 (5) A Concessionaire who contravenes sub-regulation 1, 2 or 3 commits an offense and shall be liable on conviction to a fine not less than ten (10) million shillings or imprisonment for a term not

		exceeding two years.
PART III – DOWNSTREAM COAL AND COAL BED METHANE		
Licensing	15.	(1) A person shall not engage in importation, storage, transportation, utilization and operation of a common user facility of coal and its derivatives without a valid licence issued by the Authority. (2) A person shall not engage in transportation, storage exportation, importation and sale of Coal Bed Methane without a valid licence issued by the Authority.
Licence Application	16.	(1) Any person intending to engage in the activities in regulation 15 must apply for a Coal Business Licence in the prescribed manner. (2) The application shall be submitted electronically through the RMIS, accompanied by the required documents specified in Fourth Schedule of this regulation. (3) The Authority shall review the application within thirty (30) days of submission. (4) Applicants shall comply with all applicable laws, regulations and standards governing such coal business (5) If the application is materially complete, does not contravene any written laws, and meets the prescribed requirements, the Authority may grant the relevant licence, permit or certificate, with or without conditions. (6) The Authority shall reject applications that fail to meet the prescribed requirements and shall provide the applicant with written reasons for the rejection within fourteen (14) days. (7) The Coal Business Licence shall be issued in the format specified in the Sixth Schedule and shall contain conditions as determined by the Authority. (8) A licence issued under these regulations shall be valid for the period specified in the licence. (9) An application for renewal of a licence or permit shall be submitted at least thirty (30) days prior to expiry, in the prescribed manner and accompanied by the required documents as specified in Fourth Schedule of this regulation.
Factors for the Authority to consider in an application	17.	(1) The Authority shall, in granting or rejecting an application for a licence or permit, take into consideration the factors a) the impact of the undertaking on the social, cultural or recreational life of the community. b) the need to protect the environment and to conserve the natural resources in accordance with the environmental, health, and maritime laws and international maritime treaties ratified by Kenya and other guidelines developed by the

		Authority. c) compliance with Occupational Safety and Health Act or other safety and health standards recommended by the Authority in consultation with the relevant statutory body. d) compliance this Act and the relevant Kenyan Standard and in the absence of such standard, any international standard recommended by the Authority in consultation with the Kenya Bureau of Standards. e) land use or the location of the undertaking. f) economic and financial benefits to the country or area of supply of the undertaking. g) the cost of the undertaking and financing arrangements. h) the ability of the applicant to operate in a manner designed to protect the health and safety of users of the service for which a licence or permit is required and other members of the public who would be affected by the undertaking i) the technical and financial capacity of the applicant to render the service for which the licence or permit is required; and j) any other matter that the Authority may consider likely to have a bearing on the undertaking			years from the date of issue. e.) In the case of licence for production of energy from coal and coal bed methane, for the number years in the ratified coal field development plan. f.) In the case of licence for bulk sales of coal and coal bed methane for two years from the date of issue g.) In the case of permit for operation of transport of coal and coal bed methane for three years from the date of issue. h.) In the case of permit for construction of a storage facility for coal and coal bed methane for the number years in the approved work plan and from the date of issue; and i.) In the case of permit for construction of common user facilities for the number of years in the approved work plan and from the date of issue (2) A permit granted for construction of an energy production facility shall be rendered invalid and cease to have effect if the execution of the works has not commenced at the expiry of twelve months from the date on which the permit was granted, or at the expiration of any extended period which the Authority may allow.
Obligations of the Authority	18.	(1) The Authority may request for additional information before making a determination for an application for a licence or permit. (2) The Authority shall, i. within thirty (30) days of receipt of such an application in 19 (1), ii. within forty-five (45) days of receipt of such an application in 19 (2) make a decision and communicate to the applicant whether the application is successful or not. (1) The Authority may: a) approve; or b) reject with reasons in communication	Modification, Suspension or Revocation of a Licence, Certificate or permit	20.	(1) The Authority reserves the right to modify, suspend, or revoke a licence, certificate and/or permit for justifiable reasons, following due notice and a hearing. Grounds for such actions include: a. Significant changes in site conditions affecting operations; b. Major violations of licence, certificate and/or permit terms or regulatory requirements; c. Misrepresentation of critical information during the application process; d. Environmental or safety concerns arising from operations. (2) The Authority shall issue a fourteen (14) days' notice to show cause why a licence, permit or certificate should not be suspended or revoked (3) A notice under sub-regulation (2) shall specify: a. The relevant condition in the licence or permit or a requirement of the Act to which the breach relates. b. The actions, omission or other facts which the Authority considers as constituting a contravention of the conditions of the licence or permit or the requirements of the Act; and c. The reasons why the Authority is of the opinion that the circumstances mentioned under paragraph (a) have occurred or arisen.
Form and duration of a licence and permit	19.	A licence or permit issued under these regulations shall be in the form set out in the Sixth Schedule and shall be valid for: a.) In the case of licence for operation of common user facilities for three years from the date of issue. b.) In the case of licence for coal and coal bed methane production, for the number years in the ratified coal field development plan. c.) In the case of licence for coal import and export for two years from the date of issue. d.) In the case of licence for coal and coal bed methane storage for two			

		(4) The notice shall be served upon the Licensee at the principal office of the Licensee and shall take effect from the date of service. (5) The Authority shall determine the matter within thirty days from the expiry of the notice. (6) A suspension or revocation of a licence or permit shall not indemnify the Licensee against any penalties or obligations for which such person may have become liable under the Act.
Extension of duration of licence or permit	21.	(1) An application for an extension of a licence or permit shall be made to the Authority in conformity with the requirements as spelled out in the Fourth Schedule. (2) Where the Authority refuses to extend a licence or permit, the Authority shall give the applicant reasons for the refusal in writing.
Failure by Authority to renew beyond licence or permit expiry date	22.	If an application for the renewal of a licence or permit has been made in conformity with Regulation 16, but has not been processed by the Authority by the date of expiry of the licence or permit, then the licence or permit shall continue to be in force until the application for renewal is processed and any renewal in such a case shall be taken to have commenced from the day when the licence or permit would have expired before the renewal.
Replacement of a Licence or Permit	23.	(1) A Licensee may apply for a replacement of a licence or permit in cases where the licence or permit has been lost, destroyed or defaced. (2) Such an application shall be accompanied by proof of payment of the prescribed fee set out in the Fifth Schedule. (3) Where it is shown to the satisfaction of the Authority that a licence or permit has been lost, destroyed or defaced, the Authority shall issue a duplicate licence or permit to the Licensee
Transfer of a Licence or Permit	24.	(1) A Licensee shall not transfer or otherwise assign any rights, powers or obligations conferred or imposed upon the Licensee by the licence or permit without the consent of the Authority. (2) The application of transfer shall be done to the Authority accompanied with the supporting documentation. (3) A licence or permit may be transferred on the following grounds: a. In the case of a death of the Licensee, to the legal representative. b. in the case of the bankruptcy of the Licensee or assignment for the benefit of the Licensee's creditors generally, to the lawfully appointed administrator, trustee or assignee. c. in the case of a corporation in liquidation, to the lawfully

		appointed liquidator. d. in any case where the Licensee becomes subject to a legal disability, to any person lawfully appointed to administer the Licensees' affairs. e. in the case of voluntary transfer of the undertaking, to the new owner of the undertaking. (4) The Authority shall satisfy itself that the transferee meets requisite legal, technical and financial competence to carry out the undertaking. (5) The transferee shall undertake in writing to comply with the conditions of the licence or permit. (6) The transferor shall comply with the tax provisions for transfer prior to making the application to the Authority. (7) The Authority shall not withhold any consent to any application to transfer unless it has reason to believe that public interest is likely to be prejudiced by the transfer.
Transfer of a Coalbed Methane Interest	25.	(1) A Licensee shall not transfer any interest in a Coal Bed Methane agreement without the prior written consent of the Cabinet Secretary, granted upon the advice of the Authority. (2) An application for transfer shall be made electronically through the Authority, in the prescribed form, and accompanied by the documents set out in the Fourth Schedule (3) The Cabinet Secretary may approve a transfer where- a. the Licensee has complied with all applicable laws, the terms of the coal bed methane agreement, and the conditions of the licence; b. the proposed transferee has demonstrated financial and technical capacity to meet the obligations of the COALBED METHANE agreement; and c. all taxes, fees, and charges relating to the transfer have been duly assessed and paid. The application above shall be done electronically through the Authority and be accompanied by the requisite requirements for the Transfer of coalbed methane as specified in Appendix III. (4) The Cabinet Secretary shall not unreasonably withhold consent to a transfer unless public interest, safety, or national security considerations justify refusal (5) For the purposes of this regulation, "transfer" includes any direct or indirect assignment of an interest in a coalbed methane agreement, including shareholding or ownership changes that result in control of a Licensee (6) The Cabinet Secretary and the Authority shall inform the relevant revenue authority of all approved transfers within twenty (20) days (7) The Licensee shall notify the Cabinet Secretary and the Authority of any change in ownership or control, and provide

		a written undertaking that the obligations of the coalbed methane agreement shall continue to be honored (8) The Cabinet Secretary, upon receiving an advisory from the Authority shall not unreasonably withhold permission for the transfer of an interest in coalbed methane agreement by the Licensee to another person unless there is reason to believe that the transfer of that interest shall be against public interest or safety. (9) Notwithstanding any other payments that may be applicable for the transfer of shares and stocks by a company that is a party to coalbed methane agreement, the Authority and the Cabinet Secretary may charge such fees for the transfer as may be prescribed in Regulations. (10) Any person or Licensee who contravenes the provisions of this section commits an offence and on conviction, shall be liable to a fine of not less than ten million shillings or to imprisonment for a term of two years or to both.			the Authority may give the owner or occupier of such facility twenty-one days' notice in writing to either obtain the requisite permits and if such permit is not obtained within the said period, stop the construction and immediately decommission the works. (3) If the owner or occupier of the facility in sub section fails to remove the works, the Authority shall decommission the works at the cost of that person. (4) Notwithstanding subsection (1), any person who constructs a coal value addition facility and a bulk coal storage facility without a permit is liable on conviction to a fine of not less than one million shillings.
			Generation of electricity	29.	(1) A person who wishes to undertake generation of electricity from coal, coal bed methane and derivatives shall make an application for a licence to the Authority in conformance with these regulations. (2) The requirements, procedures and supporting documentations necessary for obtaining such an approval are prescribed in Appendix XIII.
Register of Licence and Permits	26.	The Authority shall keep a register and publish on its website, in such form as it may determine, of all licences and permits granted and shall record therein, in respect of each licence or permit— a.) The particulars required under sections 96 and 100 of the Act b.) Particulars of any duplicate issued, or any amendment(s) of the licence or permit made under sections 97 and 103 of the Act c.) Particulars of any suspension or revocation of the licence or permit under these regulations; and d.) Such other particulars as the Authority may prescribe.	Energy production for commercial heating	30.	(1) Any person who wishes to produce energy from coal, coal bed methane and its derivatives shall do so with a valid licence issued by the Authority. (2) A person licensed to produce energy using coal or coal bed methane shall not stock coal, coal bed methane or derivatives that do not conform to the Kenyan standards. (3) A person licensed to produce energy using coal, coal bed methane or derivatives shall maintain records of quantities of coal, coal bed methane or derivatives that is purchased or used. (4) The records in sub-regulation (2) shall be maintained for at least seven calendar years and shall contain the following information in relation to each consignment coal, coal bed methane or derivatives: - Date of purchase - Country of origin - Name of the business entity from which each consignment was purchased - Net weight in kilograms purchased - Net weight in kilograms of coal, coal bed methane or derivatives held at the Licensee's premises - Net weight in kilograms of coal, coal bed methane or derivatives used during the reporting period - Records of quality test certificates done from an (5) A person who contravenes this regulation commits an offence and shall be upon conviction be liable to the fine set forth in the Third Schedule.
Inspection of Register	27.	(1) Subject to sub-regulation (2) below, any person may apply to, during official working hours, and upon payment of the prescribed fee, to inspect the physical register of licences and permits. (2) Notwithstanding the provisions of sub-regulation (1), the following persons are exempt from payment of the fee: - Member of the National Police Service or a public officer acting in the course of their duty; or - Employee of the BAuthority or person authorized in writing by the Authority, or - Person having the express exemption granted by the Authority			
Construction Permit	28.	(1) Any person who wishes to construct a coal and coal bed methane storage, handling, common user and value addition facility shall apply to the Authority for a construction permit with respect to the facility as per the requirements in appendix I. (2) Where a facility that produces energy using coal is constructed without a permit,			
			Importation of coal	31.	(1) A person who wishes to undertake importation of Coal or Coal Bed Methane shall make an application for a licence to the Authority in conformance with these regulations.

	(2) The requirements, procedures and supporting documentations necessary for obtaining such an approval are prescribed in Appendix IX of this regulation. (3) A Coal or Coal Bed Methane importer shall do so through the import routes prescribed by the East African Community Customs Management Act (4) The holder of a licence to import coal shall import through the import routes prescribed by the East African Community Customs Management Act. (5) The importer provided under sub-regulation (1) shall within twenty-four (24) hours prior to the arrival of the coal at a point of entry, declare to the Authority the — - load port of the coal - total quantity of the coal in kilograms; and - Final destination points of the coal. (6) All imported coal shall be tested at the prescribed load port and port of landing as specified by the Kenya Bureau of Standards or any such body responsible for standards in Kenya (7) Where the specifications of such coal fail to meet the Kenya Standard, the importer shall return the coal to the load port (8) Where the importer fails to return the coal specified in sub-regulation (4) to the load port, the Authority shall facilitate the destruction of the coal at the cost of the importer (9) An importer shall submit to the Authority the following information with respect to the preceding month, on or before the 10th day of each calendar month — - total quantity in kilograms of coal imported - the source of imported coal - total coal supply to coal consumers indicating the quantity in kilograms (10) An importer shall not supply coal to any person unless such a person is in possession of a valid coal licence or permit issued under the Act. (11) An importer shall comply with International Maritime Solid Bulk Cargoes (IMSBC) Codes and requirements for safe transport of coal. These includes but not limited to: - Cargo ventilation, - Coal moisture content, - Temperature measurement during loading and during voyage, - Coal cargo declaration on properties and associated hazards (9) The Authority may instruct an importer to terminate the supply of coal to a coal consumer where it is established that the consumer is in violation of the licence or permit conditions required under the Act.
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		(10) A person who contravenes this regulation commits an offence and shall be liable on conviction to the fine set out in the Third Schedule
Exportation of coal	32.	(1) A holder of a mineral dealer's licence under the Mining laws shall obtain a letter of no objection from the Authority before applying for an export permit for coal extracted from the Ongoing Projects listed in the Fourth Schedule of the Act. (2) The Authority may issue a letter of no objection if it determines that the domestic market demand for coal is satisfied
Exportation of Coal Bed Methane	33.	(1) A person who wishes to undertake exportation of Coal Bed Methane shall do so in accordance with the terms and conditions of a valid licence issued by the Authority. (2) The requirements, procedures and supporting documentations necessary for obtaining such a licence are prescribed in Appendix IX of this regulation. (3) A person who wishes to undertake exportation of Coal Bed Methane shall do so through gazetted export routes
Transportation	34.	(1) A person who wishes to — - A person who wishes to undertake transportation of coal, Coal Bed Methane or coal by-products by road, rail or any other mode shall obtain a valid licence issued by the Authority. - drive a vehicle, or engage a driver, for the purpose of transporting coal or coal bed methane shall ensure that such driver is certified for that purpose by the Authority. (2) The requirements, procedures and supporting documentations necessary for obtaining such approvals are prescribed in Appendix IV and VI of this regulation. (3) A person who contravenes this regulation commits an offence and shall, where no fine or penalty thereof is expressly set out in the Act, be liable on conviction to the applicable fines set out in the Third Schedule.
Storage, handling, Common User and Value Addition facilities	35.	(1) A person who wishes to operate a coal or coal bed methane storage, handling, common user and value addition, facilities shall make an application for a licence to the Authority in the prescribed form in Fourth Schedule. (2) The application in sub-regulation (1) shall be submitted in conformity with the requirements as spelled out in the Appendix II and accompanied by the requisite fees as set out in the Fifth Schedule
Access to common user facilities	36.	(1) A person licensed to operate a common user facility shall provide non-discriminatory open access to its facility for use by any Licensee on payment of fair and reasonable tariffs and charges as shall be approved by the Authority from time to time. (2) Where any Licensee willfully delays complying with the terms of the contract pursuant to sub-regulation the Authority may - compel the Licensee to evacuate the coal products when appropriate - order disposal of such products held

		by a common user facility in the event of the Licensee failing to comply with such direction c. impose such penalties and fines as set out in Third Schedule of these Regulations
Obligations of operators of common user facilities	37.	(1) The operator of a common user facility shall not: - a) Load or discharge coal or coal bed methane to or from an unlicensed coal or coal bed methane transport vehicle. b) Allow a coal or coal bed methane transport vehicle to be driven into his facility by an operator who is not in possession of a valid driver's certificate issued by the Authority or its licensing agents. (2) A person who contravenes this regulation shall be upon conviction be liable to the fine set out in the Third Schedule.
Form of contract for common user facilities, review and approval	38.	(1) Any person licensed to operate a common user facility shall use a form of contract approved by the Authority which shall set out the rights and responsibilities of the licensee and users of the facility. (2) In approving a form of contract under sub-regulation (1), the Authority shall satisfy itself that such a form of contract has fair and reasonable provisions dealing with issues, including but not limited to— a. limitation of liability of the licensee. b. termination and suspension provisions; and c. complaint handling and dispute resolution mechanism. (3) If disputes are not resolved as provided in the contract, redress may be sought in accordance with the law (4) The Authority shall review and approve the agreed contract before execution by the parties (5) A copy of the contract executed shall always be in custody of the Authority.
Security stocks of coal and coal bed methane for electricity generation	39.	(1) An electricity generation licensee shall maintain a security stock level equivalent to coal or coal bed methane required to operate the power plant for a minimum of ninety (90) days at the full capacity of the plant.
Audits and Inspections	40.	The Authority shall carry out periodic inspections of the coal business premises to ascertain conformity with licence or permit conditions.
PART IV – MISCELLANEOUS		

Compliance with environmental, health and safety laws	41.	The licensee shall undertake to comply with the relevant laws on the environment, health and safety
Reporting of accidents and incidents	42	(1) A Licensee or permit holder shall notify the Authority in writing of any incident or accident in accordance with section 214 of the Act (2) The information to be submitted to the Authority shall include the following- (a) name of the facility and/or vehicle licensee (b) name and certificate number of the of the driver of the vehicle involved where applicable. (c) date and time of the incident or accident. (d) location and geographical spread of the incident or accident. (e) number of injuries and/or fatalities if any. (f) scale of environmental damage if any. (g) personal property and third-party property damage if any. (h) description of the events leading to and the most probable cause of the incident or accident. (3) The licensing authority or the Authority may direct an investigation to be carried out into any accident or incident under sub-regulation(1) in accordance with the laid down procedures. (4)A coal business Licensee who fails to comply with these Regulations commits an offence.
Offences and attempted offence	43.	(1) A person who contravenes the provisions of these regulations relating to section 115 of the Act will be liable to the penalties provided therein
Complaints and dispute resolutions and appeals	44.	(1) A person who is dissatisfied or aggrieved by a decision by the Authority may within thirty days of communication to him of the order or decision appeal to the Energy and Petroleum Tribunal established under section 25 of the Act.
Display of licence and permits	45	(1) Every licence or permit, except when lodged with the Authority, must be displayed in a prominent position at the licensed premises. (2) If a licensee or permit holder fails to display the licence or a certified copy, they commit an offence and are liable, upon conviction, to a fine as specified in Third Schedule
Resource mobilization and	46	(1) There is established a fund to be known as the Coal Energy Regulatory Fund, which shall be administered by the Authority for the purposes of regulation, compliance monitoring, research, and capacity building

revenue allocation	within the coal energy value chain. (2) The Fund shall consist of— (a) a percentage share of royalties, concession fees, or other revenues derived from coal and coal bed methane energy projects as provided under these Regulations; (b) fees, levies, and penalties payable under these Regulations; grants, gifts, or donations lawfully received from any lawful source. (3) Pursuant to Article 202(1) of the Constitution and section 183 of the Mining Act, (Cap. 306), the revenue from coal energy production shall be shared as follows— (a) National Government – seventy per cent (70%); (b) County Government where the resource is located – twenty per cent (20%); (c) Local Community – ten per cent (10%). (4) Provided that out of the National Government's share under paragraph (a), three per cent (3%) shall be allocated and remitted to the Energy and Petroleum Regulatory Authority (EPRA) to support regulatory functions, environmental compliance monitoring, data management, and safety enforcement for the coal energy subsector. (5) The Fund shall be operated under a separate account in accordance with the Public Finance Management Act, 2012, and shall be administered by the Authority in consultation with the Cabinet Secretary responsible for energy and the National Treasury. (6) The Fund shall be applied to- (a) finance regulatory operations, licensing, inspection, and enforcement activities under these Regulations; (b) undertake research and capacity-building programs on coal energy utilization; (c) establish and maintain a coal data and information management system; and (d) support community engagement and environmental monitoring initiatives. (7) The Cabinet Secretary may, on the recommendation of the Authority, make rules for the proper management and accounting of the Fund.
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FIRST SCHEDULE (r.4(4))

ONGOING PROJECTS AREA BOUNDING COORDINATES

UTM Zone 37S Arc 1960		
	Meters East	Meters North
COAL BLOCK "A" CONCESSION		
1	416000	9857000
2	417000	9837000
3	411000	9837000
4	410000	9840000
5	411000	9844000
6	411000	9849000
7	409000	9857000
COAL BLOCK "B" CONCESSION		
1	413000	9870000
2	416000	9866000
3	418000	9864000
4	418000	9861000
5	416000	9857000
6	409000	9857000
7	406000	9870000
COAL BLOCK "C" CONCESSION		
1	416000	9887000
2	415000	9882000
3	415000	9874000
4	413000	9870000
5	406000	9870000
6	405000	9876000

UTM Zone 37S Arc 1960		
	Meters East	Meters North
7	407000	9882000
8	407000	9887000
COAL BLOCK "D" CONCESSION		
1	415000	9905000
2	417000	9897000
3	416000	9887000
4	407000	9887000
5	407000	9892000
6	410000	9892000
7	412000	9897000
8	407000	9902000

I) MUI BASIN COAL BLOCK CONCESSIONS

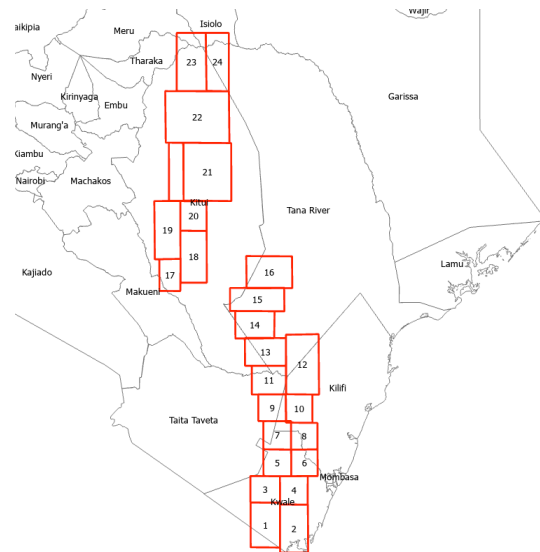
Arc 1960 Decimal Degrees		
	Longitude	Latitude
SOUTH COAL BLOCK "19"		
1	38.0	-1.5
2	38.25	-1.5
3	38.25	-2.0
4	38.0	-2.0
SOUTH COAL BLOCK "20"		
1	38.25	-1.50
2	38.30	-1.50
3	38.30	-1.75

II) EXPLORATORY COAL AND COAL BED METHANE DRILLING SERVICES IN KITUI, KWALE, KILIFI AND TAITA TAVETA COUNTIES

Arc 1960 Degrees, Minutes		Arc 1960 Decimal Degrees	
Longitude	latitude	Longitude	latitude
4	39 11 E	3 15 S	39.18 -3.25
BLOCK "12"			
1	39 11 E	2 41 S	39.18 -2.68
2	39 11 E	3 15 S	39.18 -3.25
3	39 30 E	2 41 S	39.5 -2.68
4	39 30 E	3 15 S	39.5 -3.25
BLOCK "13"			
1	38 50 E	2 45 S	38.83 -2.75
2	38 50 E	3 00 S	38.83 -3
3	39 11 E	2 45 S	39.18 -2.75
4	39 11 E	3 00 S	39.18 -3
BLOCK "14"			
1	38 45 E	2 30 S	38.75 -2.5
2	38 45 E	2 45 S	38.75 -2.75
3	39 06 E	2 30 S	39.1 -2.5
4	39 06 E	2 45 S	39.1 -2.75
BLOCK "15"			
1	38 41 E	2 19 S	38.68 -2.32
2	38 41 E	2 30 S	38.68 -2.5
3	39 11 E	2 19 S	39.18 -2.32
4	39 11 E	2 30 S	39.18 -2.5
BLOCK "16"			
1	38 51 E	2 00 S	38.85 -2
2	38 51 E	2 18 S	38.85 -2.3

3	39 15 E	2 00 S	39.25 -2
4	39 15 E	2 18 S	39.25 -2.3

SECOND SCHEDULE (r.4(4)) ONGOING PROJECTS AREAS MAP



THIRD SCHEDULE

(r.18(2), 23(2), 26(4), 40(4), 41(2), 42(2), 46(5), 47(5), 48(9), 54(2))

OFFENCES AND FINES

	Offence	Penalty or fine in Kshs/Jail Term on conviction	Penalty or fine in Kshs/Jail Term for attempted
1	Generation	Fine of not less than two hundred shillings,	Fine of not less than one hundred thousand shillings or a term of imprisonment of not less than six (6) months or to both such fine and imprisonment
2	Transportation of coal without a valid permit contrary to Regulation 34	Fine of not less than two hundred shillings, or imprisonment for a term of not less than one year, or to both such fine and imprisonment	Fine of not less than one hundred thousand shillings or a term of imprisonment of not less than six (6) months or to both such fine and imprisonment -
3	Failure to renew a Licence or permit, but continues to engage in coal business	Fine of not less than One Million Shillings or a term of imprisonment of not less than one (1) year or both such fine and imprisonment.	Fine of not less than one million shillings or a term of imprisonment of not less than three years or to both such fine and imprisonment.-
4	Failure to display a Licence, permit or a certified copy within the premises of the Licence contrary to regulation 45	A fine of not exceeding one million shillings	-
5	Construction of a value addition facility and a coal storage facility without a permit	Fine of not less than One Million Shillings or a term of imprisonment of not less than one (1) year or both such fine and imprisonment.	Fine of not less than one million shillings or a term of imprisonment of not less than three years or to both such fine and imprisonment-
6	Failure to provi	A fine of not less than one million shillings	-

	de non-discriminatory open access to its facility for use by any		
	Offence	Penalty or fine in Kshs/Jail Term on conviction	Penalty or fine in Kshs/Jail Term for attempted
1	Generation	Fine of not less than five hundred shillings,	-
2	Transportation of coal without a valid permit contrary to Regulation 34	Fine of not less than fifty thousand shillings, or to imprisonment for a term of not less than three months, or to both such fine and imprisonment.	-
3	Failure to renew a Licence or permit, but continues to engage in coal business	A penalty equivalent to fifty per cent of the prescribed Licence or permit fee	-
4	Failure to display a Licence, permit or a certified copy within the premises of the Licence contrary to regulation 25	A fine of not exceeding one million shillings	-
5	Construction of a coal value addition facility and a coal storage facility without a permit	two hundred thousand shillings or a term of imprisonment of not less than one year or to both such fine and imprisonment	-
6	Failure to provide de non-discriminatory open access to its facility for use by any	A fine of not less than one million shillings	-

	Offence	Penalty or fine in Kshs/Jail Term on conviction	Penalty or fine in Kshs/Jail Term for attempted
	Licensee or person on payment of fair and reasonable charges		
7	Load or discharge coal or coal bed methane to or from an unlicensed coal or coal bed methane transport vehicle or allowing a coal or coal bed methane transport vehicle to be driven into his facility by an operator who is	A fine of not less than one million shillings	-

	not in possession of a valid driver issued by the Authority		
8	Failure to report accidents or incidents	A fine not exceeding two hundred shillings	-
9	Operating of a facility that produces energy using coal or being a transporter of coal for energy	Two hundred thousand shillings or a term of imprisonment of not less than one year or to both such fine and imprisonment	One
10	Being the owner or operator of a facility that produces energy	Two hundred thousand shillings or a term of imprisonment of not less	One

	Offence	Penalty or fine in Kshs/Jail Term on conviction	Penalty or fine in Kshs/Jail Term for attempted
	using coal or transporter of coal for energy production, contravenes relating to the construction	than one year or to both such fine and imprisonment	of not less than six months or to both such fine and imprisonment
11	Maliciously misinforms the public leading to economic sabotage	One million shillings or a term of imprisonment of not less than one year or to both such fines and imprisonment, if the offence relates to paragraphs	One million shillings or a term of imprisonment of not less than three years or to both such fine and imprisonment
12	Illegally acquires any interest in public land set aside for development	One million shillings or a term of imprisonment of not less than one year or to both such fines and imprisonment, if the offence relates to paragraphs	One million shillings or a term of imprisonment of not less than three years or to both such fine and imprisonment
13	Being the owner of a facility that produces energy using coal, contravenes construction such facility	One million shillings or a term of imprisonment of not less than one year or to both such fines and imprisonment, if the offence relates to paragraphs	One million shillings or a term of imprisonment of not less than three years or to both such fine and imprisonment
14	Owns or operates an unlicensed facility that produces energy using coal	One million shillings or a term of imprisonment of not less than one year or to both such fine and	One million shillings or a term of imprisonment of not less than three years or

	Offence	Penalty or fine in Kshs/Jail Term on conviction	Penalty or fine in Kshs/Jail Term for attempted
		imprisonment, if the offence relates to paragraphs	to both such fine and imprisonment
15	Constructs any facility defined construction permit	One million shillings or a term of imprisonment of not less than one year or to both such fines and imprisonment, if the offence relates to	One million shillings or a term of imprisonment of not less than three years or to both such fine and imprisonment

	paragraphs	
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FOURTH SCHEDULE (r. 19(3), 25(1), 26(2))

REQUIREMENTS AND FORMS FOR APPLICATIONS OF LICENCES AND PERMITS

A: APPLICATION FORMS

FORM I: APPLICATION FOR A CONSTRUCTION PERMIT FOR A COAL/COALBED METHANE STORAGE FACILITY

1. Application Type:

- a. ☐ New Application
- b. ☐ Amendment Application

i. Amendment Details: _____

2. Type of Construction permit:

- a. ☐ Consumer Site
- b. ☐ Common User Facility
- c. ☐ Storage Facility

3. Bio Data:

- i. Business/Company Name:
- ii. Postal address:
- iii. Email Address:
- iv. Telephone:
- v. Physical Address:
- vi. Registration Date:
- vii. Business Type
- viii. Business Registration No.:
- ix. Contact Person
- a. Name
- b. Designation
- c. Mobile Number
- x. Country:

4. Details of proprietors or partners owning business or directors/shareholders of the company, as the case may be:

Name shares	Passport/ ID No.s	Nationality	No of
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

5. Proposed location of the Storage facility:

- I. Plot No: _____
- II. Name of area: _____
- III. Sub-County: _____
- IV. County: _____

GPS coordinates:

Longitude: _____ Latitude: _____

6. Full description of the coal facility:

- a) Expected storage capacity (MT):

7. Attach the certified copies of documents as per set criteria for construction permit for the requisite permit category coal/coal bed methane storage facility in the Coal Licensing Framework 2026.

FORM II: APPLICATION FOR A COAL/COALBED METHANE BUSINESS LICENCE

1. Type of coal/coalbed methane business Licence

- a. ☐ Storage of coal/coalbed methane
- b. ☐ Import of Coal
- c. ☐ Transport of coal/coalbed methane
- d. ☐ Transport of coalbed methane
- e. ☐ Industrial Energy Production from Coal/Coalbed methane
- f. ☐ Electricity Generation from Coal/Coalbed methane

2. Application Type:

- a. ☐ New Application
- b. ☐ Renewal Application
- c. ☐ Amendment Application

i. Amendment Details: _____

3. Bio Data:

- i. Business Name
- ii. Postal address:
- iii. Email Address:
- iv. Telephone:
- v. Physical Address:
- vi. Registration Date:
- vii. Business Type
- viii. Business Registration No.:
- ix. Contact Person
- a. Name
- b. Designation
- c. Mobile Number
- x. Country:
- xi. County:

4. Details of proprietors or partners owning business or directors/shareholders of the company, as the case may be:

Name shares	Passport/ ID No.s	Nationality	No of
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

5. Proposed location of the business premises:

V. Plot No: _____

VI. Building Name: _____

VII. Street/Market: _____

VIII. County: _____

GPS coordinates:

Longitude: _____ Latitude: _____

6. For transport, full description of the transport truck/Locomotives for a transport Licence
 - b) Vehicle Type
 - c) Truck/Locomotive/Wagon Number
 - d) Truck Chassis No.
 - e) Truck Maximum Capacity
7. Attach the certified copies of documents as per set criteria for the requisite Licence as set in the Coal Licensing Framework 2026.

FORM III: APPLICATION FOR A COAL OR COALBED METHANE NON-EXCLUSIVE EXPLORATION PERMIT

APPLICANT OVERVIEW			
LEAD APPLICANT/PERMIT HOLDER			
	Name	Company Reg. No	Percentage share
1			
OTHER CONSORTIUM MEMBERS (if applicable)			
2			
3			
4			
...			
Date of application:			

APPLICANT DETAILS (provide for all consortium members)	
Name:	
Nationality:	
Legal status	(Natural person, body corporate etc.)
Home office address:	
Phone	
Email:	
Fax	
Website:	
Applicant Representative Details in Kenya	
Name	
Phone:	
Address:	
Email:	
Website:	
Physical address in Kenya:	
Powers of Authority/ Appointment letter	
Parent company information (if applicable)	
Provide information on ownership structure the group and parent company up to the ultimate controlling entities (include all details as outlined above)	

PROPOSED PERMIT AREA(S) UNDER APPLICATION	
Provide details of the proposed permit area as per requirements in annex Appendix X	
Objectives of the proposed exploration:	
A	
B	

... (Add rows if necessary)

PROPOSED WORK PROGRAMME & BUDGET

Provide a statement of the proposed minimum work programme as per the requirements in Appendix X

TECHNICAL CAPACITY OF THE APPLICANT

Provide a statement of the technical capacity (skills, experience in coal exploration and mining, coalbed methane drilling and production expertise, specialized equipment, qualified personnel) and experience as per the requirements in Appendix X.

FINANCIAL CAPACITY OF THE APPLICANT (For the last three (3) years)

A Provide for audited financial records (income, expenses, assets, liabilities, and transactions) for the last 3 years with declaration from authorized representative of the company.

AUTHORISED SIGNATORY OF THE APPLICANT

Signature of applicant	Date
Signature of co-applicant(s) if applicable	Date

FORM IV: APPLICATION FOR TRANSFER OF INTEREST IN COALBED METHANE RIGHTS
1. Applicant Details (Transferor – Current Holder of Interest)

Name of Entity:	
Address:	
Contact Person:	
Phone Number:	
Email:	
Permit/License No.:	

2. Transferee Details (Transferee – Proposed Holder of Interest)

Name of Entity:	
Address:	
Contact Person:	
Phone Number:	
Email:	
Company Registration Number:	
Nationality/Country of Incorporation:	

3. Details of Coalbed Methane Agreement

Name of Rights/License:	
License/Contract Area:	
Date of Rights:	
Current participating interest held by transferor (%):	
Proposed Interest to be transferred (%):	

Nature and Type of Transfer

☐ Full Transfer of Interest	
☐ Partial Transfer of Interest	
☐ Farm-in/Farm-out	
☐ Corporate Merger or Acquisition	
☐ Other (please specify):	

4. Supporting Documentation (Attach the following)

1. ☐ Copy of COALBED METHANE Agreement
2. ☐ Deed/Agreement of Transfer
3. ☐ Board Resolutions (Transferor and Transferee)
4. ☐ Financial Capability Statement of Transferee
5. ☐ Technical Capability Statement of Transferee
6. ☐ Proof of Good Standing of Both Parties
7. ☐ Statutory registrations, Government Consents or Approvals Obtained
8. ☐ Other Relevant Documents (list and attach):

6. Declaration

We, the undersigned, hereby certify that the information provided in this application is true and correct to the best of our knowledge and that we are in compliance with all applicable laws and regulations regarding the transfer of interest in coalbed methane agreements.

Transferor (Current Interest Holder)

Signature: _____

Name: _____

Title/Position: _____

Date: _____

Transferee (Proposed Interest Holder)

Signature: _____

Name: _____

Title/Position: _____

Date: _____

FORM V: SURVEY APPROVAL APPLICATION FORM

This application is hereby submitted under the Energy Act, 2019 for approval of the coalbed methane survey as follows:

Applicant's details:	
1. Name of applicant (full corporate name):	
2. Applicant's Address (full corporate address):	
3. Coalbed Methane Concession/Permit name and number:	
4. Phone number:	
5. Fax:	
6. Email address:	

Survey details:	
1. Type of the survey:	
2. Purpose of the survey:	
3. Area to be covered by the survey with coordinates (x, y, z):	
4. Proposed start and finish date for the survey:	
5. Methodology to be used:	Separate
6. Equipments to be used:	
7. Name/Company of the person conducting the survey:	
8. Person contacts details of the person conducting the survey:	
Enclosed documents: (Attach by ticking the boxes as appropriate)	
☐	Copy of the applicant's registration documents
☐	Survey program
☐	Map of the operational area
☐	Environmental impact statement
☐	Cadastral map
☐	Other supporting documents (specify, where applicable)

FORM VI: DRILLING PERMIT APPLICATION FORM

1.	☐ ication Type:
a.	☐ New Permit Application
b.	☐ Renewal of Permit Application
c.	☐ Type of Well
	☐ Exploration Well
	☐ Production Well
	☐ Injection Well
	☐ Disposal Well
	☐ Specify other wells if applicable.....
2.	Applicant's details:
Name of applicant (full corporate name):	
Applicant's Address (full corporate address):	
Exploration permit number:	
Phone number:	

Fax:	
Email address:	
3. Permit details:	
i. Well name	
ii. Well details (Vertical, directional, etc.)	
iii. Summary of operations carried out on the well	
iv. Proposed start and finish date of work	
v. Description of methodology to be used	
vi. Description of the drilling rig to be used	
vii. Name of a sub-contractor (where such person is not a contractor) responsible for executing work	
viii. Address of a subcontractor	
ix. Contact details of the person responsible for communications with the Authority regarding the permit (full name, address, telephone number and email address)	
Attach documents as per the requisite requirements in Appendix XII	
Date: (dd-mm-yyyy)	
Name of the Authorised Applicant's representative	
Signature:	
4. FOR OFFICIAL USE ONLY	
Date application received	
Name of Authorised Authority Representative	
Signature and Stamp	

B: REQUIREMENTS FOR LICENCES/PERMITS

Appendix I: Requirements for Coal/Coalbed methane Storage, value addition and common user facility construction permit

a). Permit Application requirements

1. Certificate of Incorporation / Business Registration Certificate (for the firm);
2. CR12 from the Registrar of Companies (*should not be older than 1 year at the time of application submission*). Further, if a Limited company appears as part of the shareholders, provide the company's CR12 plus all the Directors' IDs);
3. Legible Copies of Identification Documents (IDs/Passports for all the directors);
4. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*);
5. KRA Pin certificate or A Valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority (KRA);
6. Proof of land ownership in way or title deed or long term registered lease agreement.
7. Valid ESIA and SEA report/license from NEMA specifically authorizing development of coal storage facility.
8. Development permission from the respective County Government (including County Physical Planning Office);
9. Proof of Contractor/firms experience in works of similar magnitude and complication. Provide a list of similar works carried in the last 5 years indicating project client name, contact person and details, name of project, cost, project duration and description.
10. Proof of firm's financial capability to undertake the works (*latest three (3) years certified Audited accounts statements or a three (3) year certified Bank Statement.*)
11. Mechanical engineer's drawings specifying materials and design/ operational limitations (Site layout design, conveyor belts, product ducts, above-ground installations(s), water fittings,ifiers, IGCC installation, dust suppression systems, carbon capture technology, management of Sulphur IV oxide, Nitrogen Oxide, ventilations as applicable) etc.; and
12. Civil engineer's drawings (all civil works including drainage, Sheds, retaining walls and fences, access roads and ramps, etc.)

13. Any other document as may be deemed necessary by the Authority

Note: All drawings are to be done by respective class of professional engineers or firm(s) registered as such (attach proof). These shall, at minimum, take into consideration of the Kenya building Standards and Requirements.

Appendix II: Requirements for Licence to Operate a Coal/Coal bed methane Storage, Value Addition and Common User Facility

a). New Licence Application requirements

1. Certificate of Incorporation / Business Registration Certificate;
2. CR12 from the Registrar of companies (*should not be older than 1 year at the time of submission of the application. Further, if a Limited company appears as part of the shareholders, provide the company's CR12 plus all the Directors' IDs*);
3. Legible Copies of Identification Documents (IDs/Passports for all the directors);
4. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*);
5. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority;
6. A valid Single Business Permit for the premises of operation from the respective County Government;
7. Proof of ownership of a coal/coalbed methane storage facility (*title deed or a registered lease in the name of applicant*);
8. A valid Environmental Impact Assessment License from NEMA for the project; or an acknowledgement from NEMA of having submitted an annual Environmental Audit report for the facility (*the acknowledgement should not be older than 1 year at the time of submission of the application*);
9. A valid Fire Clearance Certificate for the facility from the respective County Government;
10. A letter from the Kenya Bureau of Standards as proof of conformity assessment of the facility against the applicable Kenya Standard;
11. A valid certificate of registration of the facility as a work place from the Directorate of Occupational Safety and Health Services;
12. Air quality report (*not be older than 1 year at the time of submission of the application*);
13. Proof of access to a calibrated weighbridge by submitting a scan of either (for coal common user facility):
 - a) Proof of ownership of a calibrated weighbridge; or
 - b) Long term agreement (*minimum 5 years*) for use of a calibrated weighbridge.
14. A valid certificate of weighing scale calibration (*for the weigh bridge*) from the Department of Weights and Measures;
15. A summary Emergency Response Plan from the applicant;
16. Proof of training of employees in the safe handling of Coal/coalbed methane from National Industrial Training Authority approved personnel.
17. A professional Engineers completion report to include; facility construction; facility installation; quality assurance report; system commissioning report

b). Renewal Licence Application Requirements

1. CR12 from the Registrar of companies (*should not be older than 1 year at the time of submission of the application. Further, if a Limited company appears as part of the shareholders, provide the company's CR12 plus all the Directors' IDs*);

2. Legible Copies of Identification Documents (IDs/Passports for all the directors);
3. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*);
4. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority;
5. A valid Single Business Permit for the premises of operation from the respective County Government;
6. Proof of ownership of a coal storage facility (*title deed or a registered lease in the name of applicant*);
7. An acknowledgement from NEMA of having submitted an annual Environmental Audit report for the facility (*the acknowledgement should not be older than 1 year at the time of submission of the application*);
8. A valid Fire Clearance Certificate for the facility from the respective County Government;
9. A valid certificate of registration of the facility as a work place from the Directorate of Occupational Safety and Health Services;
10. Air quality report (*not be older than 1 year at the time of submission of the application*);
11. Proof of access to a calibrated weighbridge by submitting a scan of either (for coal common user facility):
 - a) Proof of ownership of a calibrated weighbridge; or
 - b) Long term agreement (*minimum 5 years*) for use of a calibrated weighbridge.
12. A valid certificate of weighing scale calibration (*for the weigh bridge*) from the Department of Weights and Measures;
13. A summary Emergency Response Plan from the applicant;
14. Proof of training of employees in the safe handling of Coal from National Industrial Training Authority approved personnel.

Appendix III: Requirements for Application for Transfer of Coal or Coal Bed Methane Interest

a). Licence application requirements

1. Certificate of Incorporation / Business Registration Certificate (for the firm);
2. CR12 from the Registrar of Companies (*should not be older than 1 year at the time of application submission*). Further, if a Limited company appears as part of the shareholders, provide the company's CR12 plus all the Directors' IDs);
3. Legible Copies of Identification Documents (IDs/Passports for all the directors);
4. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*);
5. Declaration to adhere to the Interest terms and conditions as committed by the transferor.
6. Deed/Agreement of Coalbed Methane transfer of interest by the parties.
7. Copy of the Licensees Coalbed Methane Interest agreement.
8. Boards resolutions in agreement for the transfer from both the transferor and transferee organisations/companies.
9. A letter of undertaking that Transferor is in compliance with all Kenyan laws and regulations, no outstanding fees/taxes.

10. Proof of having competent personnel by providing CVs of key technical staff with training and experience to respect to the Interest in Coalbed Methane agreement. *(Minimum; 5No with bachelor's degree and over 10 years' experience with Coalbed Methane Interest/contracts.*
11. Proof of Applicants list of plant and equipment including ownership details (owned or leased, year of manufacture, Horse Power, current location and availability). *Attach proof ownership.*
12. Proof of Applicants experience in Interests of similar magnitude and complication. Provide a list of similar interests/contracts carried in the last 5 years indicating project client name, contact person and details, name of project, cost, project duration and description. *Attach proof.*
13. Proof of Applicants/Transferee financial capability to service the interests of the COALBED METHANE agreement. Attach latest five (5) years certified Audited accounts statements.
14. Any other document as may be deemed necessary by the Authority

Appendix IV: Requirements for Transportation of Coal/ Coalbed Methane by Road Licence

(a)New Licence Application requirements

1. Certificate of Incorporation / Business Registration Certificate;
2. CR12 from the Registrar of Companies (should not be older than 1 year at the time of application submission). Further, if a Limited company appears as part of the
3. shareholders, provide the company's CR12 plus all the Directors' IDs);
4. Legible Copies of Identification Documents (IDs/Passports for all the directors);
5. Valid Work Permits Class "G" for all foreign directors working in Kenya (Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document)
6. A Valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority
7. A valid Motor Vehicle Inspection Certificate from the National Transport and Safety Authority for each prime mover and trailer
8. Logbook for each prime mover and trailer (Attach a valid lease agreement if vehicle is not in the name of the applicant);
9. A paired list of prime movers and trailers where necessary (In Microsoft Excel);
10. A valid Fire certificate for each vehicle from the County Government;
11. A summary Highway Emergency Response Plan from the applicant; and
12. A valid Single Business Permit for the premises of operation from the respective County Government.
13. Any other document as may be deemed necessary by the Authority

II. Renewal Licence Application requirements

1. CR12 from the Registrar of Companies (should not be older than 1 year at the time of application submission). Further, if a Limited company appears as part of the
2. shareholders, provide the company's CR12 plus all the Directors' IDs);
3. Legible Copies of Identification Documents (IDs/Passports for all the directors);
4. Valid Work Permits Class "G" for all foreign directors working in Kenya (Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of

Attorney by a foreign director should provide a copy of their identification document);

5. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority
6. A valid Motor Vehicle Inspection Certificate from the National Transport and Safety Authority for each prime mover and trailer
7. Logbook for each prime mover and trailer (Attach a valid lease agreement if the vehicle not in the name of the applicant)
8. A paired list of prime movers and trailers where necessary (In Microsoft Excel)
9. A valid Fire certificate for each vehicle from the County Government
10. A summary Highway Emergency Response Plan from the applicant; and
11. A valid Single Business Permit for the premises of operation from the respective County Government.

Appendix V: Requirements for Coal or Coal Bed Methane Truck Driver Certificate Application

a). Licence application requirements

1. Legible copy of National ID or Passport
2. A coloured passport sized photo of the applicant.
3. If foreign, Valid Work Permit Class "C" or "G" (if applicable)
4. Valid Driving Licence (must be of appropriate class, e.g., CE for articulated trucks)
5. A Police Clearance Certificate of the applicant (should not be older than 1 year at the time of submission of the application)
6. Valid Defensive Driving Certificate from a recognized institution
7. Certification in hazardous materials handling or coal transport safety (if available)
8. Valid Tax Compliance Certificate (from KRA)
9. Valid fire training certificate from recognized institution
10. Proof of Occupational Safety and Health (OSHA) or coal-specific safety induction
11. Any health/medical fitness certificate confirming the applicant's ability to drive heavy trucks
12. Any additional documents that EPRA may deem necessary (subject to current licensing guidelines)

Appendix VI: Requirements for Transportation of Coal by Rail Licence

a.) New Licence Application requirements

1. Certificate of Incorporation / Business Registration Certificate
2. CR12 from the Registrar of Companies (should not be older than 1 year at the time of application submission). Further, if a Limited company appears as part of the
3. shareholders, provide the company's CR12 plus all the Directors' IDs)
4. Legible Copies of Identification Documents (IDs/Passports for all the directors)
5. Valid Work Permits Class "G" for all foreign directors working in Kenya (Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document)
6. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority
7. A valid mechanical inspection certificate for each wagon

8. A valid fire certificate for each wagon from the County Government
9. Proof of ownership of each coal wagon or lease agreement with owner of the wagons
10. A valid driver certificate for each locomotive driver
11. A valid medical surveillance certificate for each locomotive driver from doctors approved by the Directorate of Occupational Safety and Health Services
12. A summary Emergency Response Plan from the applicant; and
13. A valid Single Business Permit for the premises of operation from the respective County Government.

b.) Renewal Licence Application requirements

1. CR12 from the Registrar of companies (should not be older than 1 year at the time of submission of the application. Further, if a Limited company appears as part of the
2. *shareholders, provide the company's CR12 plus all the Directors' IDs)*
3. Legible Copies of Identification Documents (*IDs/Passports for all the directors*)
4. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*)
5. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority
6. A valid mechanical inspection certificate for each wagon
7. A valid fire certificate for each wagon from the County Government
8. Proof of ownership of each coal wagon or lease agreement with the owner of the wagons
9. A valid driver certificate for each locomotive driver
10. A valid medical surveillance certificate for each locomotive driver from doctors approved by the Directorate of Occupational Safety and Health Services
11. A summary Emergency Response Plan from the applicant; and
12. A valid Single Business Permit for the premises of operation from the respective County Government.

Appendix VII: Requirements for Licence for Production of Energy from Coal

a). New Licence Application requirements

1. CR 12 from the registrar of companies (not older than 1 year)
2. Certificate of Incorporation / Business Registration Certificate
3. Legal Copies of Identification Documents for all Directors
4. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority
5. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*);
6. A valid Single Business Permit for the premises of operation from the respective County Government
7. Proof of ownership of the land the proposed project is to be located (*title deed or a registered lease in the name of applicant*);
8. A valid Environmental Impact Assessment License from NEMA for the project
9. Technical Qualifications of Personnel

10. A valid certificate or report on examination for the facility (*from an inspector certified by the Directorate of Occupational Safety and Health Services*);
11. Audited Financial Accounts for the last 3 years
12. Documentation of how emissions will be controlled as per Environmental Management and Coordination (Air Quality) Regulations, 2014 & KS EAS 1047
13. A valid Fire Clearance Certificate for the facility from the respective County Government
14. A letter from the Kenya Bureau of Standards as proof of conformity assessment of the facility against the applicable Kenya Standard
15. Certificate of Compliance with the Physical Planning Act 2019 (*PPA5 or PPA2*);

b). Renewal Licence Application requirements

1. CR 12 from the registrar of companies (not older than 1 year)
2. Legal Copies of Identification Documents for all Directors
3. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority
4. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*)
5. A valid Single Business Permit for the premises of operation from the respective County Government
6. Proof of ownership of the land the proposed project is to be located (*title deed or a registered lease in the name of applicant*)
7. A valid Environmental Impact Assessment License from NEMA for the project
8. Technical Qualifications of Personnel
9. A valid certificate or report on examination for the facility (*from an inspector certified by the Directorate of Occupational Safety and Health Services*)
10. Audited Financial Accounts for the last 3 years
11. Documentation of how emissions will be controlled as per Environmental Management and Coordination (Air Quality) Regulations, 2014 & KS EAS 1047
12. A valid Fire Clearance Certificate for the facility from the respective County Government
13. A letter from the Kenya Bureau of Standards as proof of conformity assessment of the facility against the applicable Kenya Standard
14. Certificate of Compliance with the Physical Planning Act 2019 (*PPA5 or PPA2*)

a). New Licence Application requirements

1. CR 12 from the registrar of companies (not older than 1 year)
2. Certificate of Incorporation / Business Registration Certificate
3. Legal Copies of Identification Documents for all Directors
4. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority
5. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*);
6. A valid Single Business Permit for the premises of operation from the respective County Government

Appendix VIII: Requirements for application of a licence for generation of electricity from coal, coal bed methane and derivatives.

7. Proof of ownership of the land the proposed project is to be located (*title deed or a registered lease in the name of applicant*)
8. A valid Environmental Impact Assessment License from NEMA for the project
9. A valid certificate or report on examination for the facility (*from an inspector certified by the Directorate of Occupational Safety and Health Services*)
10. Documentation of how emissions will be controlled as per Environmental Management and Coordination (Air Quality) Regulations, 2014 & KS EAS 1047
11. A valid Fire Clearance Certificate for the facility from the respective County Government
12. A letter from the Kenya Bureau of Standards as proof of conformity assessment of the facility against the applicable Kenya Standard
13. Certificate of Compliance with the Physical Planning Act 2019 (*PPA5 or PPA2*)
14. Mechanical engineer's drawings specifying materials and design/ operational limitations (P&ID, LPG tank(s) construction, filling facility, pressure relief valves, water draw off fittings).
15. Civil engineer's drawings all civil works including drainage, tank saddle, hard standing surfaces, internal service roads, structures etc.).

Appendix IX: Requirements for Import, Export and Sale of Coal/coalbed methane Licence

a). New Licence Application requirements

1. Certificate of Incorporation / Business Registration Certificate
2. CR12 from the Registrar of companies (should not be older than 1 year at the time of submission of the application. Further, if a Limited company appears as part of the shareholders, provide the company's CR12 plus all the Directors' IDs)
3. Legible Copies of Identification Documents (IDs/Passports for all the directors)
4. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document*)
5. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority
6. A valid Single Business Permit for the premises of operation from the respective County Government
7. Proof of access to a licensed coal/ coalbed methane storage facility through submitting a scan of either:
 - a. A valid Licence for a coal / coalbed methane storage facility in the name of applicant or a valid long-term lease (*minimum 5 years*) with an operator of a licensed coal storage facility; or
 - b. A valid hospitality agreement with an operator of a licensed coal/coalbed methane storage facility.

b). Renewal Licence Application requirements

1. CR12 from the Registrar of companies (should not be older than 1 year at the time of submission of the application. Further, if a Limited company appears as part of the shareholders, provide the company's CR12 plus all the Directors' IDs);
2. Legible Copies of Identification Documents (IDs/Passports for all the directors);
3. Valid Work Permits Class "G" for all foreign directors working in Kenya (*Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given*

Powers of Attorney by a foreign director should provide a copy of their identification document);

4. A valid Tax Compliance Certificate for the applicant from the Kenya Revenue Authority;
5. A valid Single Business Permit for the premises of operation from the respective County Government
6. Proof of access to a licensed coal storage facility through submitting a scan of either:
 - a. A valid Licence for a coal/coalbed methane storage facility in the name of applicant or a valid long-term lease (*minimum 5 years*) with an operator of a licensed coal storage facility; or
 - b. A valid hospitality agreement with an operator of a licensed coal/coalbed methane storage facility.

Appendix X: Requirements for Non-Exclusive Exploration Permit Application

The applicant for non-exclusive exploration permit shall;

1. Submit CR12 from the Registrar of Companies (should not be older than 1 year at the time of application submission). Further, if a Limited company appears as part of the shareholders, provide the company's CR12 plus all the Directors' IDs).
2. Certificate of Incorporation / Business Registration Certificate (for the transferee);
3. Legible Copies of Identification Documents (IDs/Passports for all the directors);
4. Valid Work Permits Class "G and D" for all foreign directors working in Kenya (Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document);

Appendix XI: Specific Survey Approval Requirements

1. Submit CR12 from the Registrar of Companies (should not be older than 1 year at the time of application submission). Further, if a Limited company appears as part of the shareholders, provide the company's CR12 plus all the Directors' IDs).
2. Certificate of Incorporation / Business Registration Certificate (for the transferee);
3. Legible Copies of Identification Documents (IDs/Passports for all the directors);
4. Valid Work Permits Class "G and D" for all foreign directors working in Kenya (Foreign directors not resident in Kenya should provide a notarized declaration. Further, any employee given Powers of Attorney by a foreign director should provide a copy of their identification document);
5. The permit holder shall provide evidence of consent or rights with landowners or affected communities.
6. Updated financial guarantee to cover any potential environmental or operational liabilities arising from the survey activities.
7. Documentation confirming compliance with the terms and conditions of the non-exclusive exploration permit, including payment of fees, submission of prior reports, etc.

Appendix XII: Requirements Drilling Permit Application

1. Engineer's drawings specifying materials and design/ operational limitations (Site layout design, above-ground installations(s), water fittings, dust suppression systems, ventilations as applicable) etc.
2. A summary Emergency Response Plan from the applicant;
3. Technical Qualifications of Personnel
4. NEMA permit to undertake the drilling



1. Documentation of how emissions will be controlled as per Environmental Management and Coordination (Air Quality) Regulations, 2014 & KS EAS 1047; water effluent discharge plan and emergency response plan
6. A copy of the exploration or production permits issued by the Authority
7. Details on the well plan, including details on well identification, location, activities, design philosophy, timelines, risk mitigation, chemical usage, fluid management, legal and regulatory compliance, drilling specifics, contractor details, and applicable standards etc.

FIFTH SCHEDULE (r. 19(3), 26(3), 31(2)) FEES AND CHARGES

Description	New Application (KSh.)	Renewal Application (KSh.)	Amendment Application (KSh.)	Replacement (KSh.)	Standard Charge (KSh.)
Permit for construction (storage and common user facilities)	5,000	2,000	1,000	3,000	N/A
Permit for transportation of coal	5,000	2,000	1,000	3,000	N/A
Licence for import, export and bulk sale of coal	10,000	5,000	1,000	3,000	N/A
Licence for production of energy	10,000	5,000	1,000	3,000	N/A
Licence to operate of common user facilities licence	10,000	5,000	1,000	3,000	N/A
Inspection of licences and permits register	N/A	N/A	N/A	N/A	1,000
Access to common user facility	Section 111(1)				

SIXTH SCHEDULE (r.21)

FORM OF PERMIT OR LICENCE

COAL/COALBED METHANE STORAGE/VALUE ADDITION/Common-User Construction Permit

The Energy Act 2019

COAL/COALBED METHANE STORAGE FACILITY CONSTRUCTION PERMIT



No. EPRA/PG/C_____

Construction permit is hereby granted to _____
to construct a coal storage/value addition/processing facility:

Type of facility

On premise situated at:

Plot No. _____

Building _____

Street/Market _____

Town/County _____

Max Capacity _____

This Licence expires on _____

Dated this: _____

Director General

Conditions:

1. As per Section 94 (2b), 95 (2a), and 96(1) of the Energy Act, 2019.

B. COAL/COALBED METHANE BUSINESS LICENCE

The Energy Act 2019

COAL/COALBED METHANE BUSINESS LICENCE

No. EPRA/PET/C_____

Licence is hereby granted to _____

to carry the following coal business activities:

Type of coal/coalbed methane business name

On premise situated at:

Plot No. _____

Building _____

Street/Market _____

Town/County _____

This licence expires on _____

Dated this: _____

Director General

Conditions:

1. As per Section 94 (2b), 95 (2a), and 96(1) of the Energy Act, 2019.

C. TRUCK DRIVER CERTIFICATE

FORM 3
The Energy Act, 2019



COAL DRIVER CERTIFICATE

Class: Number:

Name:

National ID No.:

KRA PIN NO.:

This Certificate authorizes the Holder to drive a Coal Truck

Photograph

Date of Issue:

Director General,
Energy and Petroleum Regulatory Authority

THIS CERTIFICATE SHALL REMAIN VALID UP TO EXPIRY DATE INDICATED ON FRONT SIDE
SUBJECT TO THE HOLDER BEING IN THE REGISTER MAINTAINED BY THE AUTHORITY AT
www.epra.go.ke

THIS CERTIFICATE IS THE PROPERTY OF THE ENERGY AND PETROLEUM REGULATORY
AUTHORITY AND SHOULD BE SURRENDERED, IF FOUND TO:

ENERGY AND PETROLEUM REGULATORY AUTHORITY
P.O. BOX 42681-00100 NAIROBI KENYA

D. SURVEY APPROVAL PERMIT



SURVEY APPROVAL PERMIT
Energy Act, 2019

Survey Approval Number:.....

This survey approval is hereby issued under the Energy Act, 2019 exclusively to the named applicant to conduct the survey (-s) as follows:

Applicant name: _

Address: (full corporate address) _____

Phone number: _____

Email address: _____

Type and purpose of survey: (description of the survey): _____

Area to be covered by survey: (description of the area or distance of survey): _____

Expiry date: (dd-mm-yyyy of first expiry date): _____

Renewal: (dd-mm-yyyy of new expiry date in case of renewal): _____

Terms and conditions:

1. The applicant or a person conducting a survey on behalf of the applicant shall—

- commence work within ____ (____) months from issuance of this approval, unless when an unforeseen circumstance arises;
- form the Authority about an unforeseen circumstance that can delay the start of works and may request an extension to the period of ____ (____) months mentioned above;
- execute survey works under submitted survey program and not deviate from its approval except for during an emergency;
- comply with all applicable laws and regulations and best industry practices;
- procure and maintain an adequate insurance cover;
- provide data, reports and information in compliance with the Energy Act, 2019
- Submit the amended survey programme, where an applicant intends to deviate from the approved program.
- other terms and conditions _____

2. This approval is valid for ____ (____) and may not be altered, revised, or modified, except with the consent of the Applicant and the Authority.

Date of issuance: (dd-mm-yyyy of issuance)

Signature and stamp: (Authority's representative)

E. FORM OF NON-EXCLUSIVE EXPLORATION PERMIT

Non-Exclusive Exploration Permit No.....

Non-Exclusive Exploration Permit

Under the conditions set out Energy Act 2019 and in this Non-Exclusive Permit, the Authority hereby grant to _____, a corporation duly organized and existing under the laws of _____ and registered at _____, ("permit-holder") this Non-Exclusive Exploration Permit.

This Non-Exclusive Exploration Permit allows the permit-holder a non-exclusive right to conduct the activities with respect to the non-exclusive exploration area described in the attached Rights.

The permit-holder shall conduct activities in accordance with the provisions of the Act, any relevant regulations, any conditions attached to the permit and the terms and conditions of any Rights, which forms an integral part of this Permit.

This Non-Exclusive Exploration Permit commences from _____ for a term of [_____] years [subject to renewal]

Dated this _____ day of _____, 20__

Signed _____

Name _____

Position _____

See mandatory conditions of this permit overleaf

F. PERMIT TO DRILL A COAL OR COAL BED METHANE WELL

Permit No. EPRA/Coalbed Methane /PP _____



THE ENERGY ACT, 2019 (Cap. 314)
COAL OR COAL BED METHANE DRILLING
PERMIT

Permit is hereby granted to _____ P.O. _____ Box _____ to carry out the following Coal or Coal Bed Methane operation;

PERMIT NAME

On premise situated at:

Plot No. _____ :

County _____ :

This permit expires on _____ :
(if no drilling has started)

Issue

Date:...

QR Code

Director General
Energy and Petroleum

See mandatory conditions of this
permit overleaf

Energy (Coal & Coal Bed Methane) Regulations, 2026